

NEW OR TRANSFER
LIQUOR LICENSE OR
PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY			
Customer #:			
Trf from:			
Reviewer:		Initials	Date
Agent:			/ /
Mgr:			/ /

To be completed by City/County Clerk		Local License #: <u>K 452691</u>	
License Fees	Annual Fee: \$ <u>1050.00</u>	Date filed with clerk:	<u>4</u> / <u>18</u> / <u>2023</u>
	Prorated Fee: \$ _____	Advertising Dates: (2 Weeks)	<u>4-27</u> & <u>5-4-2023</u>
	Transfer Fee: \$ _____	Hearing Date:	<u>5</u> / <u>8</u> / <u>2023</u>
	Publishing Fee: \$ <u>100.00</u>		
Publishing Fee Direct Billed to Applicant: ☐			
License Term: <u>upon issuance</u> /		Through <u>3</u> / <u>31</u> / <u>2024</u>	
	Month Day Year		Month Day Year
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.			
Applicant: <u>Stella Polare LLC</u>			
Trade/Business Name (dba): <u>L'Osteria Mendello</u>			
Building to be licensed/Building Address: <u>1507 Stillwater Ave Ste D</u>			
Number & Street			
<u>Cheyenne</u> <u>WY</u> <u>82009</u> <u>Laramie</u>			
City State Zip County			
Local Mailing Address: <u>1507 Stillwater Ave Ste D</u>			
Number & Street or P.O. Box			
<u>Cheyenne</u> <u>WY</u> <u>82009</u>			
City State Zip			
Local Business Telephone Number: <u>(307) 369 8375</u> Fax Number: ()			
Business E-Mail Address: <u>stellapolarellc@gmail.com</u>			
FILING FOR		FILING IN (CHOOSE ONLY ONE)	
☒ NEW LICENSE		☐ CITY OF: <u>Cheyenne</u>	
☐ TRANSFER OF LOCATION		☐ COUNTY OF: _____	
☐ TRANSFER OWNERSHIP		☐ ASSIGNMENT LETTER ATTACHED	
FORMERLY HELD BY: _____			
FILING AS (CHOOSE ONLY ONE)			
☐ INDIVIDUAL			
☐ PARTNERSHIP			
☐ LP/LLP			
☒ LLC			
☐ CORPORATION			
☐ LTD PARTNERSHIP			
☐ ORGANIZATION			
☐ OTHER _____			
TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)			
RETAIL LIQUOR LICENSE		☒ RESTAURANT LIQUOR LICENSE	
☐ ON-PREMISE ONLY (BAR)		☐ BAR AND GRILL LIQUOR LICENSE	
☐ OFF-PREMISE ONLY (PACKAGE STORE)		☐ RESORT LIQUOR LICENSE	
☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)		LIMITED RETAIL LIQUOR LICENSE (CLUB)	
		☐ VETERANS CLUB	
		☐ FRATERNAL CLUB	
		☐ GOLF CLUB	
		☐ SOCIAL CLUB	
		☐ MICROBREWERY PERMIT	
		☐ WINERY PERMIT	
		☐ DISTILLERY SATELLITE PERMIT	
		☐ WINERY SATELLITE PERMIT	
		☐ COUNTY MALT BEVERAGE PERMIT	
		☐ SPECIAL MALT BEVERAGE PERMIT	
SPECIAL DESIGNATIONS (CHOOSE ONLY ONE)			
☐ GOLF CLUB			
☐ GUEST RANCH			
☐ RESORT			
To Assist the Liquor Division with scheduling inspections: <u>OPERATIONAL STATUS</u>			
☒ FULL TIME (e.g. Jan through Dec)		(specify months of operation)	
☐ SEASONAL/PART-TIME		DAYS OF WEEK (e.g. Mon through Sat)	
☐ NON-OPERATIONAL/PARKED		HOURS OF OPERATION (e.g. 10a - 2a)	
		from <u>Jan</u> to <u>Dec</u>	
		from <u>Tuesday</u> to <u>Sunday</u>	
		from <u>11am</u> to <u>8pm</u>	

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103(a)(iii)

- (a) OWN the licensed building? ☐ YES (own)
- (b) LEASE the licensed building? (Lease must be through the term of the liquor license) ☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page 1 paragraph 4 (b) of lease.
- (ii) Where the Sales provision for alcoholic or malt beverages is located, on page 5 paragraph 13.1 of lease.
- (MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☐ YES ☒ NO

If "YES", explain:

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

(a) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO

(Requires wholesale malt beverage license with the Liquor Division)

8. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

(2/22)
9. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

12. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

13. If the applicant is a **Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Anika Williams	3/5/1996	3104 Horse Creek Cheyenne WY 82009	307-369 8375	<1	50%	YES ☐ NO ☒	YES ☐ NO ☒
Jasmin Agovic	2/5/1987	3104 Horse Creek Cheyenne WY 82009	307-365 9370	<1	50%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant. W.S. 12-4-102(a)(vi).
- ☒ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b) / W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer. W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
) SS.
COUNTY OF Laramie)

Signed and sworn to before me on this 17 day of April, 2023 that the facts alleged in the foregoing instrument are true by the following:

- 1) [Signature]
(Signature)

Anika Williams
(Printed Name)

Owner
Title
- 2) [Signature]
(Signature)

Jasmin Agovic
(Printed Name)

owner
Title
- 3) _____
(Signature)

(Printed Name)

Title
- 4) _____
(Signature)

(Printed Name)

Title
- 5) _____
(Signature)

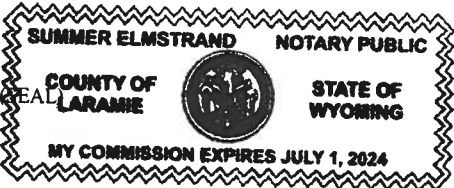
(Printed Name)

Title
- 6) _____
(Signature)

(Printed Name)

Title

Witness my hand and official seal:



[Signature]
Signature of Notary Public

My commission expires: July 1, 2024

Stella Polare LLC

DBA L'Osteria Mondello
1507 Stillwater Ave Ste D
Cheyenne, WY 82009
(307)778-6068
stellapolarellc@gmail.com

17th April 2023

Mayor Patrick Collins & City Council Members

2101 O'Neil Avenue
Cheyenne, WY 82001

Dear Mr. Collins and Members,

We are excited to be applying for a Restaurant Liquor License with the City of Cheyenne. It is no small task opening a business, even an existing one but we see what L'Osteria Mondello can be in the future. Mostly known now as one of the local favorite pizzerias, we plan to open Cheyenne to the fine dining and cultural experiences it deserves. With its long standing history in the Cheyenne community and its roots in Italian culture, L'Osteria Mondello plans to bring an array of experiences from Italy and the Mediterranean atmosphere with beverages to complement these dishes.

With the ability to serve alcoholic beverages our dishes will be nicely balanced and our menus well rounded. So we hope you will consider our application and help our small business grow and continue to serve this community we call home.

Sincerely,

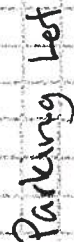
Jasmin Agovic



Anika Willaims



70
 80
 90
 100
 110
 120
 130



STATE OF WYOMING
Office of the Secretary of State

I, KARL ALLRED, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

Stella Polare LLC

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **11th** day of **October, 2022**.



Filed Date: 10/11/2022

A handwritten signature in black ink, reading "Karl T. Allred", written over a horizontal line.

Secretary of State

By: Kaytlynn Whisenhunt

Issued by:

**WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES
2219 CAREY AVE
CHEYENNE, WY 82002
EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES**

Retail Food

ACCOUNT # 12231

Whereas this party has made application for the licenses listed below in the State of Wyoming according to the law and agrees to comply with all laws, rules and regulations thereto, including the payment of all required fees, there is hereby issued to the applicant this license. This license is not transferable and, unless revoked, shall expire on the date indicated below.

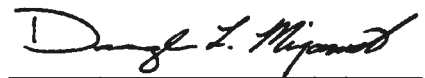
Issued to:

**STELLA POLARE LLC, DBA L'OSTERIA
MONDELLO
1507 STILLWATER STE D
CHEYENNE, WY 82009**

**STELLA POLARE LLC, DBA L'OSTERIA
MONDELLO
JASMIN AGOVIC & ANIKA WILLIAMS
3704 HORSE CREEK RD
CHEYENNE, WY 82009**

EXPIRATION DATE:

12/29/2023



Director of Dept. of Ag

**THIS LICENSE MUST BE CURRENT
AND POSTED CONSPICUOUSLY
AT THE PHYSICAL LOCATION**

BUSINESS LEASE AGREEMENT

This Lease Agreement made and entered into effective as of the 1st day of July, 2023 (the "Effective Date"), by and between Greenway Commons LLC, hereinafter called "Landlord", and Stella Polare LLC, hereinafter called "Tenant."

WITNESSETH:

In consideration of mutual covenants and agreements contained herein, and for other good and valuable consideration, which are hereby acknowledged, Landlord hereby leases to Tenant and Tenant rents from Landlord, those certain premises set forth below ("Leased Premises") and Tenant does hereby agree to the following:

ARTICLE I LEASED PREMISES, TERM, AND RENT

SECTION 1.1 LEASED PREMISES AND TERM

(a) Premises: Landlord hereby leases to Tenant and Tenant hereby leases from Landlord, upon the terms and conditions hereinafter set forth, Suite D in the Greenway Plaza Shopping Center located at 1507 Stillwater Avenue, Cheyenne, Wyoming 82009 consisting of approximately 3,400 square feet (hereinafter referred to as the "Leased Premises").

(b) Term: The initial term of this Lease shall be for a period of Five (5) years, commencing on the Effective Date of this Lease and **expiring on June 30, 2028.**

Tenant shall have the right and option to extend the Term of this Lease for one additional three (3) year term, which extension term shall commence upon the expiration of the original Term of this Lease. If Tenant exercises its option to extend the Term, the extension shall be upon the same terms, conditions, and covenants of this Lease except the annual rental payable during the extended Term shall be increased in an amount that will be determined at the time Tenant exercises its option. If Tenant desires to exercise its option to extend the Term, the Tenant shall give written notice to the Landlord one hundred twenty (120) days prior to the expiration of the Term of this Lease. If said notice is not received by Landlord within said one hundred twenty (120) day time period, Landlord shall have no obligation to renew the lease. Upon receipt of Tenant's notice to exercise its option, Landlord and Tenant agree to negotiate a new lease rate. Should the parties not be able to come to an agreement on the new lease rate, upon expiration of the initial term, this Lease shall terminate.

(c) Annual Rent: The annual rent payable by Tenant during the first two (2) years of this Lease shall be Fifty One Thousand and No/100 Dollars (\$51,000.00) per year for the initial term of the Lease, payable in monthly installments of Four Thousand Two Hundred Fifty and No/100 Dollars (\$4,250.00). Beginning in year three of this Lease, on July 1, 2025, Rent shall increase One Hundred Dollars (\$100.00) per month for an annual total rent of Fifty Two Thousand Two Hundred and No/100 Dollars (\$52,200.00).

Beginning in year five of this Lease, on July 1, 2027, Rent shall increase by another One Hundred Dollars (\$100.00) per month for an annual total rent of Fifty Three Thousand Four Hundred and No/100 Dollars (\$53,400.00). Tenant shall pay monthly installments of rent to Landlord without previous demand therefore and without any setoff or deduction whatsoever, on the first day of each and every calendar month throughout the Term and any extension thereof, and, if the term commences on a date other than the first day of a month) Tenant shall pay Landlord on the first day of the Term, a pro-rata portion of such Annual Rent; calculated on a thirty (30) day calendar month. Tenant shall pay an additional monthly amount of Four Hundred and No/100 Dollar (\$400.00) for common area expenses as provided for in Section 2.2 below. The combined monthly amounts shall make Tenant's total monthly payment shall be Four Thousand Six Hundred Fifty and No/100 (\$4,650.00).

(d) Condition of Building: Tenant shall receive the Leased Premises in its current condition, "as is."

(e) Security Deposit: Tenant shall pay a security deposit in the amount of Three Thousand Dollars (\$3,000.00). This deposit will be refunded at the expiration of the Lease Term to Tenant so long as Tenant is not in default under the terms of this Agreement, less any amounts applied against any expenses the Landlord incurs in cleaning or repairing the Leased Premises, (ordinary wear and tear excepted), against the cost to professionally clean the carpets upon move out, against any rent which Tenant fails to pay, late fees owed by Tenant, and/or damage to the Premises caused or contributed to by the Tenant. The return of the security deposit is also conditioned on the Leased Premises being returned to Landlord in a clean and tenantable condition.

(f) Notice Address: If to Tenant: Stella Polare LLC, 3704 Horse Creek Rd., Cheyenne, Wyoming 82009. If to Landlord: Greenway Commons LLC, 109 E. 17th St., Cheyenne, Wyoming 82001. If either of the parties' address changes, they shall give the other party written notice of such change within five (5) days.

SECTION 1.3 ACCEPTANCE AND ESTOPPEL CERTIFICATE OF LEASED PREMISES

Tenant does acknowledge and agree that Tenant has inspected the Leased Premises and does accept the same as suitable for Tenant's purposes. Upon request of Landlord, Tenant shall promptly execute, acknowledge and deliver to Landlord and/or Landlord's mortgagee a written acceptance or estoppel certificate with respect to the Leased Premises in form and substance provided by Landlord and at the expense of Landlord.

SECTION 1.4 QUIET ENJOYMENT

Tenant, upon paying the rents herein reserved and performing and observing all of the other terms, covenants and conditions of this Lease on Tenant's part to be performed and observed, shall peaceably and quietly have, hold and enjoy the Leased Premises during the Term, subject, nevertheless, to the terms of this Lease and to any mortgages,

ground Or underlying leases, agreements and encumbrances to which this Lease is subordinate.

ARTICLE II COMMON AREA, ASSOCIATION, AND OTHER CHARGES

SECTION 2.1 TAXES

The Tenant's share of real property taxes for the Leased Premises are included in the base rent for the Leased Premises; however, Tenant shall be responsible to pay any and all personal property taxes during the term of the Lease for personal property owned by the Tenant and kept on the Leased Premises.

SECTION 2.2 COMMON AREAS AND OPERATING COSTS

All common areas and other common facilities (hereinafter collectively called "Common Areas") made available by Landlord shall be subject to the exclusive control and management of Landlord. Common Areas (as initially constructed or as the same may be enlarged or reduced at any time thereafter) shall mean all areas, space, facilities, equipment, signs and special services from time to time made available by Landlord for the common and joint use and benefit of Landlord, the Tenant and other tenants and occupants of the building, and their respective employees, agents, Subtenants, concessionaires, licensees, customers and invitees, which may include (but shall not be deemed a representation as to their availability), the sidewalks, parking areas, access roads, driveways, landscaped areas, truck serviceways, tunnels, loading docks, public washrooms, and parcel pick-up stations.

Landlord hereby expressly reserves the right from time to time, to construct, maintain and operate lighting and other facilities, equipment and signs on all of said common areas; to police the same; to change the area, level, location and arrangement of the parking areas and other facilities forming a part of said Common Areas; to close temporarily all or any portion of the common areas for the purpose of making repairs or changes thereto and to discourage non-customer parking; to establish, modify and enforce reasonable rules and regulations with respect to the common areas and the use to be made thereof; and to grant individual Tenants the right to conduct sales in the common areas. Landlord agrees to give Tenant fifteen (15) days notice of any proposed changes. Landlord shall operate, manage, equip, light and maintain the common areas in such manner as Landlord may from time to time determine, and Landlord shall have the right and exclusive authority to employ and discharge all personnel with respect thereto. Tenant is hereby given a non-exclusive license to use, during the Term, the common areas of the building as they may now or at any time during the Term exist, provided, however, that if the size, location or arrangement of such common areas or the type of facilities at any time forming a part thereof be changed or diminished, Landlord shall not be subject to any liability thereof, nor shall Tenant be entitled to any compensation or diminution or abatement of rent therefor, nor shall such change or diminution of such areas be deemed a constructive or actual eviction. However, the building and common areas cannot be changed in a manner which would substantially affect Tenant's ability to

operate its business. Landlord reserves the right to grant to third persons the non-exclusive right to cross over and use in common with Landlord and all tenants of the building the common areas as designated from time to time by Landlord. However, such grant cannot substantially affect tenant's ability to operate its business.

Tenant hereby agrees to pay Landlord a share, computed as hereinafter provided, of the Operating Costs (as hereinafter defined) of maintaining the common areas in the building. "Operating Costs" shall mean the total cost and expense incurred in operating, maintaining and repairing the common areas, including without limitation, surcharges levied upon or assessed against parking spaces or areas; the cost and expense of landscaping, gardening and planting, cleaning, painting (including line painting), decorating, paving, lighting, sanitary control, removal of snow, trash, garbage and other refuse, non-structural roof repairs to the building, fire protection; water and sewerage charges; operation of public toilets; repair and replacement of utility systems serving the common areas, including water, sanitary sewer and storm sewer lines and other utility lines, pipes and conduits; depreciation of heating, ventilating and air conditioning equipment, the building roof, and parking lot surfaces; depreciation of machinery and equipment owned and used in operation, maintenance and repair of the common areas, or the rental charges for such machinery and equipment. Landlord may cause any or all of said services to be provided by an independent contractor or contractors. Landlord agrees to consult Tenant prior to making expenditures for common area and operating costs to obtain Tenant's approval for said expenditure. Tenant cannot unreasonably without its approval.

Tenant's share of such operating costs shall be pro-rated for the common areas based on the ratio using the gross leasable square footage of the Leased Premises as the numerator and the gross leasable square footage of the entire building in which the Leased Premises is located as a denominator.

Landlord has estimated the Operating Costs referred to in this section at \$4,800 per year, and Tenant shall pay one-twelfth (1/12) thereof monthly in advance, together with the payment of Annual Rent. After the end of each calendar year, Landlord shall furnish Tenants a statement of the actual Operating Costs, prepared in accordance with sound accounting principles, and there shall be an adjustment between Landlord and Tenant, with any addition amount owed as payment to Landlord. Should there be any surplus in the Operating Costs and described for herein, Tenant shall receive a credit from Landlord that shall be applied against the next year's Annual Rent. Tenant reserves the right to audit operating costs at Tenant's sole cost.

SECTION 2.3 UTILITY CHARGES

Tenant shall pay promptly, as and when the same become due and payable, a pro rata share of all water rents, rates and charges, all sewer rents and all charges for electricity, gas, heat, steam, hot and/or chilled water, air conditioning, ventilating, lighting systems, and other utilities supplied by the Leased Premises, based on the ratio using the gross leasable square footage of the Leased Premises as the numerator and the

gross leasable square footage of the building as the denominator, unless separately metered.

ARTICLE III USE OF LEASED PREMISES

SECTION 3.1 USE OF LEASED PREMISES

Tenant agrees to use the Leased Premises only as a restaurant and/or pizza parlor, including all related functions associated therewith. **Permission to sell alcoholic beverages on the premises is hereby granted by Landlord if an authorized liquor license is obtained and properly maintained by Tenant.** Tenants expressly agrees that the Leased Premises shall have no residential use of any kind or nature.

Tenant covenants that the Leased Premises shall, during the Term of this Lease, be used only and exclusively for lawful and moral purposes, and no part of the Leased Premises or improvements thereon shall be used in any manner whatsoever for any purposes in violation of any applicable covenants, laws, ordinances, regulations, or orders of the United States, or of the State, County and/or City where the Leased Premises are located. Tenant shall comply with all such laws, ordinances, regulations or orders now in effect or hereafter enacted (except insofar as grandfather rights apply to tenant) or passed during the Term of this Lease insofar as the Leased Premises and any signs of the Tenant are concerned, including, but not limited to zoning ordinances, building codes and fire codes, and shall make at Tenant's own cost and expense all additions and alterations to the Leased Premises ordered or required by such authorities, whether in order to meet the special needs of Tenant, or by reason of the occupancy of Tenant, or otherwise; provided, however, Tenant shall not be required to make structural alterations or improvements to the Leased Premises or the building in which the Leased Premises are located unless written approval by Landlord is obtained before making such improvements or alterations.

SECTION 3.2 ADDITIONAL COVENANTS OF TENANT

Tenant's use of the Leased Premises and the common areas shall be subject at all times during the Term to reasonable rules and regulations adopted by Landlord not in conflict with any of the express provisions hereof, governing the use of the parking areas, walls, walks, driveways, passageways, signs, exteriors of buildings, lighting and other matters affecting other tenants in and the general management and appearance of the building. Tenant agrees to comply with all such rules and regulations upon notice to Tenant from Landlord. Tenant expressly agrees as follows:

(a) All deliveries to or from the Leased Premises shall be done only at such times, in the areas and through the entrances designated for such purposes by the Landlord.

(b) All garbage and refuse shall be kept inside the Leased Premises in the kind of container specified by Landlord, and shall be placed outside of the Leased Premises prepared for collection in the manner and at the times and places specified by Landlord. If Landlord shall provide or designate a service for picking up refuse and garbage, Tenant shall use same at Tenant's cost. Tenant shall pay the cost of removal of any of Tenant's refuse and garbage and maintain all common loading areas in a clean manner satisfactory to the Landlord.

(c) No radio or television aerial or other device shall be erected on the roof or exterior walls of the Leased Premises or the building in which the Leased Premises are located without first obtaining in each instance the Landlord's consent in writing. Any aerial or device installed without such written consent shall be subject to removal at Tenant's expense without notice at any time.

(d) No loud speakers, television, phonographs, radios, tape players or other devices shall be used in a manner so as to be heard or seen outside of the Leased Premises without prior written consent of Landlord, nor shall Tenant solicit business or distribute advertising or promotional material in the common areas.

(e) The plumbing facilities shall not be used for any other purpose than that for which they are constructed; no foreign substance of any kind shall be thrown therein, and the expense of any breakage, stoppage, or damage resulting from a violation of this provision by the Tenant shall be borne by Tenant. All grease traps, if any, shall be installed and maintained in accordance with applicable law and in accordance with Landlord's requirements.

(f) Tenant shall not burn any trash or garbage of any kind in the Leased Premises.

(g) Tenant shall keep and maintain the Leased Premises' in a neat and clean condition.

(h) Tenant shall pay before delinquency, all license or permit fees and charges of a similar nature for the conduct of any business in the Leased Premises.

(i) Tenant shall store and/or stock in the Leased Premises only such merchandise as Tenant is permitted to offer for sale in the Leased Premises pursuant to this Lease.

(j) Tenant shall not conduct or permit any fire, bankruptcy, auction or "going out of business" sale (whether real or fictitious) in the Leased Premises pursuant to this Lease.

(k) Tenant shall not perform any act or carry on any practice which may damage, mar or deface the Leased Premises or any other part of the building.

(l) Tenant shall not install, operate or maintain in the Leased Premises or in any other area of the building any electrical equipment which does not bear underwriter's

approval, or which would overload the electrical system or any part thereof beyond its capacity for proper and safe operation as determined by Landlord.

(m) Tenant shall not suffer, allow or permit any vibration, noise, light, odor, or other effect to emanate from the Leased Premises, or from any machine or other installation therein, or otherwise, suffer, allow or permit the same to constitute a nuisance or otherwise interfere with the safety, comfort and convenience of Landlord or any of the other occupants of the building or their customers, agents or invitees or any others lawfully in or upon the building. Upon notice by Landlord to Tenant that any of the aforesaid is occurring, Tenant agrees to immediately remove, discontinue, or otherwise control the same.

(n) Tenant shall not use or occupy the Leased Premises in any manner or for any purpose which would injure the reputation or impair the present or future value of the Leased Premises.

(o) Tenant shall not store, display, sell or distribute any dangerous materials (including without limitation fireworks) unless specifically permitted in this Lease.

(p) Tenant shall not use or occupy the Leased Premises or do or permit anything to be done thereon in any manner which shall prevent Landlord and or Tenant from obtaining at standard rates any insurance required or desired or which would invalidate or increase the cost to Landlord of any existing insurance, or which might cause structural injury to any building, or which would constitute a public or private nuisance or which would violate any present or future laws regulations, ordinances or requirements (ordinary or extraordinary, foreseen or unforeseen) of the federal, state or municipal governments, or of any department, subdivisions, bureaus of offices thereof, or of any other government public or quasi-public authorities now existing or hereafter created having jurisdiction in the Leased Premises of which they form a part.

(q) Tenant shall not operate on the Leased Premises any coin or token operated vending machine or similar device (including, without limitation, pay telephones, pay lockers, pay toilets, scales, amusement devices, and machines for the sale of beverages, foods, candy, cigarettes, or other merchandise and/or commodities), except for the sole and exclusive use of Tenant's employees.

SECTION 3.3 SIGNS, AWNINGS AND CANOPIES

Landlord may erect and maintain such suitable signs as it in its sole discretion may deem appropriate, so long as such signs do not interfere with Tenant's business. Tenant may erect and maintain only such signs as Landlord may approve. Tenant shall submit to Landlord detailed drawings of its sign for review and approval by Landlord prior to erecting said sign on the Leased Premises. Landlord agrees to allow Tenant to place signage on the building that is compatible with other signage in the Plaza, provided it is acceptable to the City of Cheyenne. Landlord also agrees to allow Tenant to place signage on any community sign fronting the street at Tenant's expense.

Tenant shall keep insured and maintain such sign in good condition, repair and operating order at all times. If any damage is done to Tenant's sign, Tenant shall commence to repair the same within five (5) days or Landlord may at its option, repair same at Tenant's expense.

Tenant shall not place or permit to be placed or maintained on any door, exterior wall, or window of the Leased Premises any sign, awning, or canopy or advertising matter or other thing of any kind, and shall not place or maintain any decoration, lettering or advertising matter on the glass of any window or door of the Leased Premises without first obtaining Landlord's written consent. However, such consent shall not be withheld unreasonably. Tenant further agrees to maintain any such signs, awnings, canopies, decorations, lettering, advertising matter or other things as may be approved by Landlord in good condition, operating order and repair at all times. All signs of Tenant visible from the common areas of the building shall be in good taste and shall conform to the standards of design, motif and decor from time to time established by Landlord for the building. No flashing signs shall be permitted. No credit card signs or advertisements nor shall any hand lettered signs be visible from the common areas. Tenant shall install professionally lettered name signs on its service door.

ARTICLE IV INSURANCE REQUIRED OF TENANT

SECTION 4.1 INSURANCE REQUIRED OF TENANT

(a) Tenant shall obtain and provide proof of insurance to Landlord, if requested, on or before the earlier of the commencement of the Term or Tenant's entering the Leased Premises for any purpose, and keep in force at all times thereafter, the following insurance coverages with respect to the Leased Premises:

(i) Comprehensive General Liability Insurance, with contractual liability endorsement, relating to the Leased Premises and its appurtenances on an occurrence basis with a minimum single limit of One Million Dollars (\$1,000,000.00). Landlord shall be named as an additional insured on all liability insurance policies.

(ii) Fire and Lightning, Extended Coverage, Vandalism and Malicious Mischief, Flood (if required by Landlord, any mortgagee or governmental authority) Insurance in an amount adequate to cover the replacement cost of all personal property, decorations, trade fixtures, furnishings, equipment, and all contents therein of tenants. Tenant acknowledges that any building insurance carried by Landlord will not cover Tenant's personal property and that Tenant is solely responsible for obtaining such coverage to the extent desired by Tenant.

(iii) Workmen's Compensation Insurance covering all persons employed, directly or indirectly, in connection with any finish work performed by Tenant or any repair or alteration authorized by this Lease or consented to by Landlord, and all employees and agents of Tenant with respect to whom death or bodily injury claims could be asserted

against Landlord or Tenant, as required by the law of the state where the Leased Premises are located.

(iv) Plate Glass Insurance.

(b) Before undertaking any alterations, additions, improvements or construction, Tenant shall obtain at its expense a Public Liability Insurance Policy insuring Tenant and Landlord against any liability which may arise on account of such proposed alterations, additions, improvements or construction on an occurrence basis with the minimum limits set forth in this Section 4.1.

(c) All of the aforesaid insurance except the Workmen's Compensation Insurance required by subparagraph (a) (Hi) above shall be written in the name of Tenant with Landlord as an additional named insured (and any designees of Landlord and Tenant) and shall be written by one or more responsible insurance companies satisfactory to Landlord and in form satisfactory to Landlord. All such insurance shall contain endorsements that: such insurance may not be canceled or amended with respect to Landlord (or its designees) except upon ten (10) days prior written notice to Landlord (and any such designees) by the insurance company; Tenant shall be solely responsible for payment of premiums and that Landlord (or its designees) shall not be required to pay any premium for such insurance; in the event of payment of any loss covered by such policy, Landlord (or its designees) shall be paid first by the insurance company for Landlord's loss. The minimum limits of the comprehensive general liability policy of insurance shall in no way limit or diminish Tenant's liability hereunder. Tenant shall deliver to Landlord at least fifteen (15) days prior to the expiration of such policy, either a duplicate original or a certificate of insurance on all policies procured by Tenant in compliance with its obligations hereunder; together with evidence satisfactory to Landlord of the payment of the premiums therefor, if Tenant fails to obtain and provide any or all of the aforesaid insurance, then Landlord may, but shall not be required to, purchase such insurance on behalf of Tenant and add the cost of such insurance as additional rent payable with the next installment of Annual Rent.

SECTION 4.2 FIRE INSURANCE RATE AND REQUIREMENTS

Tenant agrees, as its own cost and expense, to comply with all of the rules and regulations of the Fire Insurance Rating Organization having jurisdiction and any similar body. If, at any time and from time to time, as a result of or in connection with any failure by Tenant to comply with the foregoing sentence of any act of omission or commission by Tenant, its employees, agents, contractors or licensees, or as a result of or in connection with the use to which the Leased Premises are put (notwithstanding that such use may be for the purposes hereinbefore permitted or that such use may have been consented to by Landlord), the fire insurance rate(s) applicable to the Leased Premises or the building in which same are located, or to any other premises in said building, or to any adjacent property owned or controlled by Landlord, or an affiliate of landlord, and/or to the contents in any or all of the aforesaid properties shall be higher than that which would be applicable for the hazard hazardous type of occupancy legally permitted therein, Tenant agrees that it will pay to Landlord, on demand, additional rent, such

portion of the premiums for all fire insurance policies in force with respect to the aforesaid properties and the contents of any occupant thereof as shall be attributable to such higher rate(s). If Tenant installs any electrical equipment that overloads the lines in the Leased Premises or the building in which the Leased Premises are located, Tenant shall, at its own cost and expense, promptly make whatever changes are necessary to remedy such condition and to comply with all requirements of the Landlord and the Board or Fire Insurance Underwriters and any similar body and any governmental authority having jurisdiction thereof.

For the purpose of this paragraph, any finding or schedule of the Fire Insurance Rating Organization having jurisdiction thereof shall be deemed to be conclusive.

SECTION 4.3 WAIVER OF SUBROGATION

Landlord shall not be liable for any damage by fire or other peril includable in the coverage afforded by the standard form of fire insurance policy with extended coverage endorsement attached (whether or not such coverage is in effect), no matter how caused, except if intentionally caused, it being understood that Landlord will look solely to its insurer for reimbursement. Any waiver of Landlord's right against Tenant contained in this Section shall be ineffective if such waiver shall be unobtainable, or result in an increase in the cost of Landlord's insurance, unless Tenant shall pay such increase within ten (10) days after notice thereof.

ARTICLE V REPAIRS AND MAINTENANCE

SECTION 5.1 REPAIRS BY LANDLORD

Within a reasonable period after receipt of written notice from Tenant, Landlord shall make necessary structural repairs to the exterior walls (excluding the exterior of and the frames surrounding all windows, doors, plate glass, store fronts and signs); necessary repairs to the roof, foundations, load bearing items, plumbing, pipes, and conduits located outside the Leased Premises and/or in the common areas and necessary repairs to sidewalks, parking areas and curbs. Landlord shall not be required to make any repairs where the same were made necessary by any act or omission or negligence of Tenant, any subtenant or concessionaire, or their respective employees, agents, invitee, licensees, guests, invitees, visitors, patrons, or contractors, or if caused by fire or other casualty or condemnation, except as provided in Article VII.

SECTION 5.2 REPAIRS AND MAINTENANCE BY TENANT

Tenant shall make and pay for all repairs to the Leased Premises and all equipment and systems serving the Leased Premises exclusively and shall replace all things which are necessary to keep the same in good state of repair and operating order, such as (but not limited to) all fixtures, furnishings, lighting, and store signs of Tenant except for repairs caused by Landlord or its invitees. Tenant shall at all times keep the Leased Premises and all exterior entrances, interior walls, glass and show moldings,

partitions, doors, floor surfaces, fixtures, equipment and appurtenances thereof in good order, condition and repair, and in a reasonably satisfactory condition of cleanliness, including reasonably periodic painting of the interior walls of the Leased Premises, and Tenant shall make such other necessary repairs in and to the Leased Premises not specified in Section 5.1 hereof as being the responsibility of the Landlord. Tenant shall at its expense replace all broken or damaged glass or substitutes thereof, as the case may be except for broken or damaged glass caused by Landlord or its invitees. The provisions of this Section 5.2 shall not limit Landlord's obligation to restore or repair under Article V hereof in the event of fire or other casualty, which was not otherwise caused by Tenant employees, agents, invitee, licensees, guests, invitees, visitors, patrons, or contractors.

If (i) Tenant does not repair within reasonable period of time properly as required hereunder and to the reasonable satisfaction of Landlord, or (ii) Landlord, in the exercise of its sole discretion, determines that emergency repairs are necessary, or (iii) repairs or replacements to the building and/or common areas or to the Leased Premises are made necessary by any act or omission or negligence of Tenant, its agents, employees, subtenants, assignees, concessionaires, contractors, invitees, licensees, or visitors, then in any of such events Landlord may make such repairs, and upon completion thereof, Tenant shall pay Landlord's costs and expenses for making such repairs plus twenty percent (20%) for overhead, upon presentation of a bill therefor, as additional rent. Said bill shall include interest from the date such repairs were billed by the contractor(s) making such repairs.

SECTION 5.3 INSPECTION

Landlord or its representatives shall have the right to enter the Leased Premises during any business day, during business hours (and in emergency at all times) during the Term.

SECTION 5.4 OBSTRUCTIONS

Tenant agrees to keep its loading facilities, if any, and the sidewalks immediately adjoining the Leased Premises free from trash, litter or obstructions.

ARTICLE VI ADDITIONS AND ALTERATIONS

SECTION 6.1 BY LANDLORD

In the event Landlord shall hereafter determine during the Term to erect additional structures, add stories to existing buildings, as said building may be enlarged or reduced at the sole option of Landlord by addition(s) to the building of and/or building or by the diminution thereof, Tenant hereby consents thereto and to the performance of work necessary to affect the same and any inconvenience caused thereby. However, such activities will be conducted in a manner which shall not interfere with the Tenant's use of the Leased Premises. The design, materials and performance of necessary work therefor

shall be in the sole unrestricted discretion of Landlord paid by Landlord. However, Landlord cannot reduce or substantially change the Lease Premises of Tenant.

SECTION 6.2 BY TENANT

Tenant shall not alter or change the Premises without the prior written consent of the Landlord, which shall not be unreasonably withheld. Prior to commencement of any renovation, alteration, or improvement, Tenant shall obtain Landlord's prior written approval of the plans and specifications therefor and shall cause Landlord's requirements for bonding, insurance, and other contractor requirements to be satisfied. Any work done by Tenant under the provisions of this Section 6.2 shall not interfere with the use by the other tenants of their premises in the building. Should any alteration or improvement be approved by Landlord, Tenant may make such alteration or improvement at its own expense, provided the same be performed in a good and workmanlike manner; in accordance with accepted building practices and applicable laws including, but not limited to, building codes and zoning ordinances; and so as not to weaken or impair the strength or lessen the value of the building in which the Leased Premises are located. No changes, alterations or improvements affecting the exterior of the Leased Premises or the structure of the building shall be made by Tenant.

ARTICLE VII DAMAGE, DESTRUCTION OR CONDEMNATION OF THE LEASED PREMISES

SECTION 7.1 DAMAGE OR DESTRUCTION

(a) Except for any damage or destruction which is caused by Tenant and/or Tenant's use and occupancy of the Leased Premises, or that of Tenant's licensees, servants, agents, employees or contractors, guests, invitees, and/or patrons, if all of the Leased Premises shall be damaged or destroyed by fire or other casualty insured under the standard fire insurance policy with approved standard extended coverage endorsement applicable to the Leased Premises, Landlord shall, except as otherwise provided herein, repair and/or rebuild the same with reasonable diligence. Landlord shall not be obligated to commence such repairs and/or rebuilding until insurance proceeds are released to Landlord. Landlord's obligation hereunder shall be further limited to the proceeds received by Landlord under its insurance policy which are allocable to the Leased Premises. However, if the insurance proceeds received by Landlord are insufficient to restore the premises to a condition that is substantially similar to prior condition, then Tenant shall be relieved from its obligations under this Lease. Should Tenant have notified Landlord in writing of the permanent leasehold improvements and betterments installed by Tenant in the completed Leased Premises (whether same have been paid for entirely or partially by Tenant) and should such notice accurately state the full insurance value of such permanent leasehold improvements and betterments and should Tenant have reimbursed Landlord, upon demand, for the cost of the inclusion of the amount of such permanent leasehold improvements and betterments in Landlord's insurance coverage, then and in those events, and subject to the first and second sentences of this subsection, Landlord shall repair and/or rebuild the Leased Premises to a condition

comparable to that existing prior to such damage or destruction. Nothing hereinabove contained shall impose upon Landlord any liability or responsibility to repair, rebuild or replace any property belonging to the Tenant. If there should be a substantial interference with the operation of Tenant's business in the Leased Premises as a result of such damage or destruction which requires Tenant to temporarily close its business to the public, the Annual Rent and other sums payable hereunder shall abate. Unless this Lease is terminated by Landlord, as hereinafter provided. Tenant shall repair redecorate and re-fixture the Leased Premises and restock the contents thereof in a manner and to at least a condition equal to that existing prior to its destruction or casualty, and the proceeds of all insurance carried by Tenant on its personal property, decorations, trade fixtures, furnishings, equipment and contents in the Leased Premises shall be held in trust by Tenant for such purposes. Tenant agrees to exercise reasonable diligence to reopen for business in the Leased Premises as soon as practicable unless this Lease is terminated by Landlord, as hereinafter provided.

(b) Notwithstanding anything else to the contrary contained in this Section 7.1 or elsewhere in this Lease, Landlord, at its option, may terminate this Lease on thirty (30) days' notice to Tenant given within One hundred eighty (180) days after the occurrence of any of the following:

(i) The Leased Premises and/or building in which the leased Premises are located shall be damaged or destroyed as a result of an occurrence which is not covered by Landlord's insurance; or

(ii) The Leased Premises and/or building in which the Leased Premises are located shall be damaged or destroyed and the cost to repair the same shall amount to more than forty percent (40%) of the cost of replacement thereof; or

(iii) The Leased Premises shall be destroyed during the last one (1) year of the Term or during any extended Term; or

(iv) Any or all of the buildings or common areas of the building are damaged (whether or not the Leased Premises are damaged) to such an extent that, in the sole judgment of Landlord, the building cannot be operated as an economically viable unit.

(c) Except to the extent specifically provided for in this Lease, none of the Annual Rent and other sums payable by Tenant, nor any of Tenant's other obligations under any provisions of this Lease, shall be affected by any damage to or destruction of the Leased Premises by any cause whatsoever, and Tenant hereby specifically waives all other rights it might otherwise have under any law or statute.

(d) The term "Cost of Replacement" as used in Paragraph (b)(ii) above shall be determined by the company or companies selected by Landlord insuring Landlord against the casualty in question, or if there shall be no insurance, then as the parties hereto shall agree, or in absence of an insurance company determination or an agreement, as shall be determined by arbitration according to the rules and practice of the American Arbitration Association.

(c) Tenant shall give to Landlord and to all mortgagees of record prompt written notice of any damage to or destruction to any portion of the Leased Premises resulting from fire or other casualty.

SECTION 7.2 CONDEMNATION

If the entire Leased Premises shall be appropriated or taken under the power of eminent domain by any public or quasi-public authority, or conveyance shall be made in lieu thereof, this Lease shall terminate and expire as of the date of such taking, and the parties shall thereupon be released from all liability hereunder which accrues after the date of such taking.

ARTICLE VIII DEFAULT BY TENANT

SECTION 8.1 DEFAULT

Tenant shall be in default hereunder if (a) Tenant fails to pay when due Annual Rent and any other sums when due under this Lease and such default shall continue for more than ten (10) days; or (b) Tenant fails to observe and perform any of the other terms, covenants and/or conditions of this Lease and such default shall continue for more than ten (10) days after written notice from Landlord to Tenant; or (c) Tenant fails to pay when due the Annual Rent and any other sums payable under this Lease three (3) or more times in any period of twelve (12) consecutive months; or (d) the Leased Premises shall be abandoned, deserted, vacated, or if Tenant fails to take possession of the Leased Premises and initially open for business to the public as required hereunder. If the nature of a default under (b) above is such that it cannot reasonably be cured within the aforesaid cure period, and work thereon shall be commenced within said period and diligently prosecuted to completion, then Landlord's rights under Section 8.2 shall be tolled for a reasonable period to allow for such cure to occur. The Leased Premises and all trade fixtures, equipment and inventory therein shall be conclusively deemed abandoned by Tenant upon (a) fifteen (15) consecutive days absence from the Leased Premises by Tenant or its agents without reasonable cause (unless such absence results from fire or other casualty) together with the failure to pay Annual Rent, or (b) removal of all or a substantial portion of Tenant's trade fixtures, equipment or inventory from the Leased Premises together with a failure to pay annual Rent. In such event and in addition to Landlord's remedies set forth in Section 9.2, Landlord may enter the Leased Premises and may remove all such remaining trade fixtures, equipment and inventory at Tenant's expense. All such property shall, at Landlord's option, become the property of Landlord, or said property may be placed in storage at Tenant's cost and expense, or sold or otherwise disposed of in Landlord's sole and absolute discretion, in which event the proceeds of such sale or other disposition shall belong to Landlord.

If at any time during the Term there shall be filed by or against tenant or any successor, Tenant then in possession or any guarantor of either under this Lease, in any

court pursuant to any statute either of the United States or of any state, a petition (i) in bankruptcy, (ii) alleging insolvency, (iii) for reorganization, (iv) for the appointment of a receiver, or (v) for all arrangement under the Bankruptcy Acts, or if a similar type of proceeding shall be filed, Landlord may terminate Tenant's rights under this Lease by notice in writing to Tenant, and thereupon Tenant shall immediately quit and surrender the premises to Landlord, but Tenant shall continue to be liable for the payment of rent and all other sums due hereunder.

SECTION 8.2 LANDLORD'S RIGHTS ON DEFAULT

In the event of any default by Tenant, Landlord may (1) apply the Security Deposit, if any, toward the satisfaction and cure of such a default, and/or (2) cure Tenant's default at Tenant's costs and expense, and/or (3) reenter the Leased Premises and remove all persons and all or any property therefrom, by any suitable action or proceeding at law, and repossess and enjoy the leased Premises with all additions, alterations and improvements, and Landlord may, at its option, repair, alter, remodel and/or change the character of the Leased Premises as it may deem fit, and/or (4) at any time relet the Leased Premises or any part or parts thereof, as the agent of Tenant or in Landlord's own right, and/or (5) terminate this Lease upon not less than three (3) weeks written notice to Tenant.

The exercise by Landlord of any right granted in this Section, shall not relieve Tenant from the obligation to make all rental payments, and to fulfill all other covenants required by this Lease, at the time and in the manner provided herein, and if Landlord so desires, all current and future rent and other monetary obligations do hereunder less the fair rental value of the Leased Premises shall become immediately due and payable after Tenant has been in default for a period of three (3) months. Tenant throughout the remaining term hereof shall pay Landlord, no later than the last day of each month during the term, the then current excess, if any, of the sum of the unpaid rentals and costs to Landlord resulting from such default by Tenant over the proceeds, if any, received by Landlord from such reletting, if any, but Landlord shall have no liability to account to Tenant for any excess.

In the event of a breach by Tenant of any of the covenants or provisions hereof, Landlord shall have, in addition to any other remedies which it may have, the right to invoke any remedy allowed at law or in equity to enforce Landlord's right or any of them, as if re-entry and other remedies were not herein provided for. Tenant agrees that no demand for rent, except as required under this contract, and no re-entry for condition broken and no notice to quit possession or other notices prescribed by statute shall be necessary to enable Landlord to recover such possession, but that all right to any such demand and any such re-entry and any notice to quit possession or other statutory notices or prerequisites are hereby expressly waived by Tenant. The only notices required are those required by this contract.

Exercise by Landlord of any one or more remedies provided for herein shall not be deemed to be an acceptance of surrender of the Premises by Tenant, whether by

agreement or operation of law, it being understood that such surrender can be effected only by the written agreement of Landlord and Tenant. No alteration of locks or other security devices and no entry by Landlord into the Premises or removal or other exercise of dominion by Landlord over the property of Tenant or others at the Premises shall be deemed unauthorized or constitute conversion. Tenant hereby consenting, after any Tenant default, to the aforesaid exercise of dominion over Tenant's property within the Premises. All claims for damages by reason of any such reentry, repossession and alteration of locks or other security devices are hereby waived, as are all claims for damages by reason of any distress warrant, forcible detainer or unlawful detainer proceedings, sequestration proceedings or other legal process. Tenant agrees that any reentry by Landlord may be pursuant to judgment obtained in forcible detainer or unlawful detainer proceedings or other legal proceedings or without the necessity for any legal proceedings and Landlord shall not be liable for trespass or otherwise.

SECTION 8.3 NON-WAIVER PROVISIONS

The failure of Landlord to insist upon a strict performance of any of the terms, conditions and covenants herein shall not be deemed to be a waiver of any rights or remedies that Landlord may have and shall not be deemed a waiver of any subsequent breach or default in the terms, conditions and covenants herein contained except as may be expressly waived in writing.

The maintenance of any action or proceeding to recover possession of the Leased Premises, or any installment or installments of rent or any other moneys that may be due or become due from Tenant to Landlord, shall not preclude Landlord from thereafter instituting and maintaining subsequent actions or proceedings for the recovery of possession of the Leased Premises or of any other moneys that may be due or become due from Tenant. Any entry or re-entry by Landlord shall not be deemed to absolve or discharge Tenant from the obligations of this Contract.

SECTION 8.4 INABILITY TO PERFORM

If Landlord is delayed or prevented from performing any of its obligations under this Lease by reason of strike or labor troubles of any cause whatsoever beyond Landlord's control, the period of such delay or such prevention shall be deemed added to the time herein provided for the performance of any such obligation by Landlord.

SECTION 8.5 ATTORNEY'S FEES AND REMEDIES

If a party shall at any time be in default hereunder, and if the other party shall deem it necessary to engage attorneys to enforce its rights hereunder, the defaulting party will reimburse the prevailing party for the reasonable expenses incurred thereby, including but not limited to court costs and reasonable attorney's fees. Each party shall have any and all remedies available under the law.

**ARTICLE IX
OTHER PROVISIONS**

SECTION 9.1 DEFINITION AND LIABILITY OF LANDLORD

The term "Landlord" as used in this Lease means only the owner or mortgagee in possession for the time being of the building in which the Leased Premises are located or the owner of a leasehold interest in said building and/or the land thereunder (or the managing agent of any such owner or mortgagee) so that in the event of sale of said building or leasehold interest or an assignment of this Lease; or a demise of said building and/or land, Landlord shall be and hereby is entirely freed and relieved of all *obligations* of Landlord subsequently accruing.

SECTION 9.2 RELATIONSHIP OF THE PARTIES

Nothing contained in this Lease shall be deemed or construed as creating the relationship of principal and agent or of partnership or joint venture between the parties hereto, it being understood and agreed that neither the method of computing rent nor (my other provision contained herein nor any acts of the parties hereto shall be deemed to create any relationship between the parties other than that of Landlord and Tenant. If the named Landlord in this Lease is designed as an agent or managing agent, then Tenant agrees that the word "Landlord" shall be deemed to refer solely to such agent principal.

SECTION 9.3 INDEMNITY

Tenant agrees to indemnify and save Landlord harmless from and against any and all claims and demands (except such as result from the negligence of Landlord) for, or in connection with, any accident, injury or damage whatsoever caused to any person or property arising, directly or indirectly, out of the business conducted in or Tenant's use and/or occupancy of the Leased Premises occurring in, on or about the Leased Premises or any part thereof, including the sidewalks and parking areas adjacent thereto, or arising directly or indirectly, from any act, error, or omission of Tenant or any concessionaire or sub-tenant or their respective licensees, servants, agents, employees or contractors, guests, and invitees, from and against any and all cost, expenses and liabilities incurred in connection with any such claims and/or proceedings brought thereon, including attorneys' fees and costs. The comprehensive general liability coverage maintained by Tenant pursuant to this Lease shall specifically insure the contractual obligations of Tenant as set forth in this Section and/or as provided in this Lease. This indemnification shall include any harm incurred by any licensees, servants, agents, employees or contractors, guests, invitees, and/or patrons of Tenant's business.

SECTION 9.4 DAMAGE TO PROPERTY OR PERSONS

Landlord shall not be liable for any loss of or damage to property of Tenant or of others located in the Leased Premises or the building, by theft or otherwise, nor for any loss or damage whatsoever to any property which Tenant could remove at the end of the Term. Landlord shall not be liable for any injury or damage to persons or property or to the interior of the Leased Premises resulting from fire, explosion, falling plaster, steam gas, electricity, water, rain or snow or leaks from any part of the Leased Premises or from the pipes, appliances, or plumbing works or from the roof, street, or subsurface or from any other place or by dampness or by any other cause of whatsoever nature. Landlord shall not be liable for any such injury or damage caused by any Tenant(s) or any person(s) either in the Leased Premises or elsewhere in the building, or by occupants of property adjacent to the building, or by the public, or by operations in the construction of any private, public, or quasi-public work. Landlord shall not be responsible for damage or loss of property of Tenant kept or stored in the Leased Premises, no matter how caused.

SECTION 9.5 ASSIGNMENT OR SUBLETTING

So long as Tenant is not in default under any provision of this Lease, Tenant may assign its interest under this Lease or sublet the entire Leased Premises (but not a part thereof) to a wholly owned corporation or controlled subsidiary of Tenant, without the consent of Landlord. Tenant shall not make any other assignment or subletting without the prior written consent of Landlord. In no event shall any assignment or sublease of the Leased Premises release or relieve Tenant from any obligations of this Lease. Tenant agrees to pay as additional rent Landlord's reasonable attorney's fees incurred in connection with review and/or preparation of any assignments of the subleases.

Any permitted assignee of Tenant shall assume Tenant's obligations hereunder and shall deliver to Landlord an assignment and assumption agreement in form satisfactory to Landlord within ten (10) days after the effective date of the assignment.

If the Tenant is a corporation (other than one whose shares are regularly and publicly traded on a recognized stock exchange), Tenant represents that the ownership and power to vote its entire outstanding capital stock belongs to and is vested in the officer or officers executing this Lease or members of his or their immediate family. If there shall occur any change in the ownership of and/or power to vote the majority of the outstanding capital stock of Tenant, whether such change of ownership is by sale, assignment, bequest, inheritance, operation of law or otherwise, without the prior written consent of Landlord, then Landlord shall have the option to terminate this Lease upon thirty (30) days' notice to Tenant.

SECTION 9.6 SURRENDER OF PREMISES AND HOLDING OVER

At the expiration of the tenancy hereby created, Tenant shall surrender the Leased Premises in good condition, reasonable wear and tear excepted, and Tenant shall surrender all keys for the Leased Premises to Landlord at the place then fixed for the

payment of rent and shall inform Landlord of all combinations on locks, safes and vaults, if any, in the Leased Premises. Tenant's obligation to observe or perform this covenant shall survive the expiration or other termination of the terms of this Lease. If Tenant shall default in so surrendering the premises, Tenant's occupancy subsequent to such expiration, whether or not with the consent or acquiescence of Landlord, shall be deemed to be that of a tenancy at sufferance and in no event from month to month or from year to year, and it shall be subject to all terms, covenants, and conditions of this Lease applicable thereto, except that Annual Rent shall be twice the amount payable in the last year of the Term, and no extension or renewal of this Lease shall be deemed to have occurred by such holding over.

Prior to the expiration or sooner termination of this Lease, Tenant shall remove any and all trade fixtures, equipment and other unattached items which Tenant may have installed, stored or left in the Leased Premises or elsewhere in the building, including but not limited to counters, shelving, show cases, chairs and unattached moveable machinery purchased or provided by Tenant and which are susceptible of being moved without damage to the building. Tenant shall repair any damage to the Leased Premises caused by its removal of such fixtures and movables. In the event Tenant does not make such repairs, Tenant shall be liable for and agrees to pay Landlord's costs and expenses in making such repairs, together with a sum equal to twenty percent (20%) of such costs and expenses to cover Landlord's overhead in making such repairs on Tenant's behalf. Tenant shall not remove any plumbing or electrical fixtures or equipment, heating or air conditioning equipment, floor coverings (including, but not limited to, wall to wall carpeting) walls or ceilings, all of which shall be deemed to constitute a part of the Leased Premises owned by Landlord, nor shall Tenant remove any fixtures or machinery that were furnished or paid for by Landlord (whether initially installed or replaced). The Leased Premises shall be left in a broom-clean condition. If Tenant shall fail to remove its trade fixtures or other property as provided in this Section 9.6, such fixtures and other property not removed by Tenant shall be deemed abandoned by Tenant and at the option of Landlord shall become the property of Landlord, or at Landlord's option may be removed by Landlord at Tenant's expense plus twenty percent (20%) as herein provided, or placed in storage at Tenant's expense, or sold, or otherwise disposed of at Landlord's sole and absolute discretion, in which event the proceeds of such sale or other disposition shall belong to Landlord. Notwithstanding anything to the contrary contained herein, any of the improvements or alterations made by Tenant which are not moveable without damaging the building shall be deemed to be made part of the Leased Premises and shall become property of the Landlord at the termination of this Lease.

SECTION 9.7 LIENS

Tenant shall discharge any lien filed against the building as a result of Tenant's actions or any part thereof for work done or materials furnished with respect to the Leased Premises within thirty (30) days after such lien is filed and Tenant shall execute lien waivers prior to commencement of construction in the Leased Premises. If Tenant fails to keep this covenant, in addition to any other remedies available to Landlord under this Lease or otherwise, Landlord may at its option discharge such lien, in which event Tenant agrees to pay Landlord a sum equal to the amount of the lien thus discharged, plus

Landlord's internal administrative costs, attorney's fees, expenses and damages thereby caused Landlord.

SECTION 9.8 INTEREST

Whenever this Lease refers to "Interest", the rate shall be ten percent (10%).

SECTION 9.9 LATE PAYMENTS

Should Tenant fail to pay when due any installment of Annual Rent or any other sum payable to Landlord under the terms of this Lease, then Interest shall accrue from the date of such delinquency and shall continue until such sum is paid, and such Interest together with a Late Charge of One Hundred Dollars (\$100.00) shall be paid by Tenant to Landlord at the time of payment of the delinquent sum.

SECTION 9.10 CONSENTS

With respect to any provision of this Lease which either provides or is held to provide that consent is required, Landlord or Tenant shall not unreasonably withhold or unreasonably delay any consent or approval.

SECTION 9.11 NOTICES

Whenever notice shall or may be given to either of the parties by the other, each such notice shall be by registered or certified mail with return receipt requested to the respective address of the party to receive notice as contained herein or to such other address as either party may from time to time designate in writing to the other. Any notice under this Lease shall be deemed to have been given at the time it is placed in the mail with sufficient postage prepaid.

SECTION 9.12 NO BROKER

Tenant warrants and represents that no broker was involved on its behalf in negotiating or consummating this Lease and agrees to indemnify and hold Landlord harmless from and against any and all claims for brokerage commissions arising out of any communications or negotiations had by Tenant with any broker regarding the Leased Premises or any other premises in the building and/or the consummation of this Lease. Landlord is solely responsible for the payment of any broker's commission.

SECTION 9.13 SHORT FORM LEASE

Tenant agrees not to record this Lease without the express written consent of Landlord and further agrees to execute, acknowledge and deliver at any time after the

date of this Lease, at the request of Landlord, a "short form lease" or "memorandum of lease" suitable for recording.

SECTION 9.14 ENTIRE AND BINDING AGREEMENT

This Business Lease Agreement contains all of the agreements between the parties hereto and it may not be modified in any manner other than by agreement in writing signed by all the parties hereto or their successors in interest. The terms, covenants and conditions contained herein shall inure to the benefit of and be binding upon Landlord and Tenant and their respective successors and assigns, except as may be otherwise expressly provided in this Lease. Tenant acknowledges that neither Landlord nor any broker has made any representation to or agreement with Tenant which is not contained in this Lease.

SECTION 9.15 PROVISIONS SEVERABLE

If any term or provision of this Lease or the application thereof to any person or circumstance shall, to any extent, be invalid or unenforceable, the remainder of this lease, or the application of such term or provision to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby and each term and provision of this Lease shall be valid and be enforced to the fullest extent permitted by law.

SECTION 9.16 CAPTIONS

The captions contained herein are for the convenience and reference only and shall not be deemed as part of this Lease or construed as in any manner limiting or amplifying the terms and provisions of this Lease to which they relate.

SECTION 9.17 WAIVER OF JURY TRIAL

TO THE EXTENT PERMITTED BY LAW, THE PARTIES HERETO HEREBY JOINTLY AND SEVERALLY WAIVE ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY ACTION OR PROCEEDING RELATING TO THIS LEASE AND THE OBLIGATIONS HEREUNDER. THE PARTIES EACH REPRESENT TO THE OTHER THAT THIS WAIVER IS KNOWINGLY, WILLINGLY AND VOLUNTARILY GIVEN.

IN WITNESS WHEREOF, Landlord and Tenant have duly executed this Lease as of the day and year first above written, each acknowledging receipt of an executed copy hereof.

LANDLORD

GREENWAY COMMONS LLC

Alan B...

BY: _____
NAME: _____
ITS: _____

and provision of this Lease shall be valid and be enforced to the fullest extent permitted by law.

SECTION 9.16 CAPTIONS

The captions contained herein are for the convenience and reference only and shall not be deemed as part of this Lease or construed as in any manner limiting or amplifying the terms and provisions of this Lease to which they relate.

SECTION 9.17 WAIVER OF JURY TRIAL

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IN WITNESS WHEREOF, Landlord and Tenant have duly executed this Lease as of the day and year first above written, each acknowledging receipt of an executed copy hereof.

LANDLORD

TENANT:

GREENWAY COMMONS LLC

STELLA POLARE LLC

BY: Steve Berlin
NAME: STEVE BERLIN
ITS: owner/manager

BY: [Signature]
NAME: Anika Williams
ITS: Owner

SUBLEASE

THIS SUBLEASE ("Sublease") effective January 1, 2023, is made by and between Mondello Corporation, a Wyoming Corporation ("Sublessor") and Stella Polare, LLC, a Wyoming limited liability company ("Sublessee").

RECITALS

A. Sublessor is the tenant under a written lease dated as February 1, 2020, (the "Lease"), in which Greenway Commons, LLC, a Wyoming liability company ("Landlord,") leased to Sublessor the premises located at 1507 Stillwater Avenue, Suite D in the Greenway Plaza Shopping Center (the "Premises").

B. Sublessee is purchasing the assets of Sublessor and as part of the agreement Sublessor desires to sublease the entirety of the Premises to Sublessee.

C. Sublessee acknowledges that Sublessee has reviewed the Lease, a copy of which is attached to this Sublease as Exhibit A.

NOW, THEREFORE, for good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, Sublessor and Sublessee agree as follows:

TERMS

1. Premises. Sublessor hereby subleases to Sublessee on the terms and conditions set forth in this Sublease the Premises consisting of approximately 3,400 square feet. The floor area of the Premises is only an approximation, and there shall be no adjustment of any charges under this Sublease if the actual floor area is less than this approximation.

2. Term. The Sublease term ("Term") shall commence on January 1, 2023 (the "Commencement Date"), or when Landlord consents to this Sublease, whichever occurs last, and end on June 30, 2023 ("Termination Date"), unless extended or otherwise sooner terminated under this Sublease. If the term under the Lease is extended beyond June 30, 2023, Sublessee shall have the first right to sublease the Premises for the extended term, but shall not be required to do so. Possession of the Premises shall be delivered to Sublessee five (5) days before the Commencement Date for the Term of this Sublease.

3. Rent and Other Charges.

3.1. Rent. Sublessee shall pay rent directly to the Landlord without

deduction, setoff, notice or demand, in the amount of \$4,250 in advance on the first day of each month of the Term ("Rent"). If the Term begins or ends on a day other than the first or last day of the month, the rent for the partial months shall be prorated on a per diem basis.

3.2. Utility Charges. Sublessee shall place the accounts for all utilities serving the Premises, including, but not limited to, gas, electricity, water, sewer, phone, television and internet in the name of Sublessee and shall pay directly all changes for said utilities.

3.3. Late Charges. Sublessee acknowledges that if Sublessee fails to pay Rent, utilities or other charges required by the Lease and/or this Sublease when due, Sublessor will incur additional expense not contemplated by this Sublease, including late charges that may be imposed under the Lease. In the event of any such late payment, Sublessee shall also pay to Sublessor a late charge equal to a minimum of ten percent (10%) of the amount due to compensate Sublessor for the extra expenses incurred as a result of such late payment.

3.4. Other Charges. Sublessee shall pay all other charges and expenses required by the Sublessor under the Lease, including, but not limited to, charges for common area maintenance, operating costs, Sublessor's pro-rata share of property taxes and casualty and liability insurance.

4. Use. The Premises shall be used and occupied only as a restaurant and/or pizza parlor as set forth in greater detail in the Lease and not for any other use or purpose. Sublessee shall not use or occupy the Premises in violation of any federal, state or local laws, rules or regulations.

5. Insurance. Sublessee shall, at Sublessee's sole expense, obtain and maintain during the Term policies of insurance in such form and with such coverages and limits as set forth in greater detail in the Lease. Sublessor and Landlord shall be named as additional insureds on Sublessee's policy, which shall provide that no reduction in coverage, amendment or cancellation of the policy shall occur without first giving Sublessor thirty (30) days prior written notice. Sublessee shall also fully comply with all other insurance requirements specified in the Lease.

6. Obligations of Sublessee. Sublessee hereby expressly assumes and agrees to perform all obligations and covenants required by the Lease to be kept or performed by Sublessor as Tenant therein. Sublessee shall pay the Rent required herein and surrender the Premises on expiration or earlier termination of the Term in as good condition they now are, reasonable wear and tear excepted as set forth in Section 11 of this Sublease.

7. Obligations of Sublessor. Sublessor shall use its best efforts to maintain the Lease during the Term of the Sublease, subject, however, to any earlier termination of the Lease without Sublessor's fault.

8. Condition of Premises. Sublessor represents and warrants that the Premises is

in good condition and repair and fully usable as a restaurant, that all equipment is in good working order and that the Premises is in compliance with all federal, state and local laws and ordinances. Sublessor shall have no obligation for any additional improvements or repairs to the Premises, except as provided in the Lease and this Sublease. Sublessee shall make no improvements or repairs to the Premises without Sublessor's prior written consent, which may be withheld in Sublessor's sole and absolute discretion and, if required under the Lease, without the requisite consent of Landlord thereunder.

9. Indemnification. Sublessee assumes all risk of damage to property and/or injury to persons in, on or about the Premises from any cause whatsoever. Sublessor shall not be responsible in any way for any personal injuries, property damage, lost profit, loss of business or any other expenses incurred by Sublessee from any cause. Sublessee shall indemnify, defend, and hold harmless Sublessor, its officers, directors, shareholders, employees, attorney, insurers, successors, assigns, agents and other representatives from all actual and consequential damages, losses, claims and other liabilities, including actual attorneys' fees and costs incurred that in any way arise out of or relate to (a) the use of the Premises and/or any activity, work or other thing done, permitted or suffered by Sublessee in or about the Premises by Sublessee, its employees, customers, suppliers, invitees and other agents (collectively "Agents"); (b) all personal injury occurring on the Premises. Upon receipt of any notice regarding any claim, lawsuit or other matter giving rise to indemnity as provided above, Sublessee shall within three (3) days take immediate action acceptable to Sublessor to indemnify, defend and hold Sublessor harmless from such matters as specified above. Sublessor shall have the right to approve any counsel selected by Sublessee to fulfill its obligations under this indemnity. The payment of any money by Sublessor shall not be a condition precedent to Sublessee's indemnity.

10. Surrender. On the last day of the Term, or on the sooner termination of this Sublease, Sublessee shall surrender the Premises to Sublessor in good condition and repair, normal wear and tear excepted, but in any event with all furniture, fixtures and equipment left in good working order and condition, and all alterations or improvements made by Sublessee removed without damage to the Premises or the building where the Premises is located.

11. Default. Sublessee shall be in default under this Sublease if it or its agents breach, default or fail to perform any obligation of this Sublease and/or any obligation of the Lease required to be performed by Sublessor thereunder. Sublessor shall be entitled to all the rights, benefits and privileges of Landlord under the Lease as it pertains to Sublessee's performance of the obligations under the Lease. On the occurrence of any alleged default by Sublessee, Sublessor shall provide notice of said default to Sublessee and Sublessee shall have thirty (30) days within which to cure such default. If not cured within such, Sublessor shall be entitled to terminate this Sublease and Sublessee's rights to possession of the Premises and recover any damages all damages incurred in recovering possession and expenses of reletting, including Sublessor's reasonable attorney's fees incurred in connection therewith; provided, however, that Sublessor shall use its best efforts to relet the Premises.

11.1. Terminate Sublessee's right to possession of the Premises by any lawful means, in which case this Sublease shall terminate and Sublessee shall

12. Non-Waiver. Any action or inaction by Sublessor concerning any default or

breach of covenant by Sublessee will not be construed as a waiver thereof, nor shall any custom or practice which may come up between the parties in the course of administering this Sublease be construed to waive or to affect Sublessor's right to insist upon the strict and punctual performance by Sublessee of any term, covenant or condition hereof or to exercise any rights given Sublessor on account of any such default. A waiver of a particular breach or default shall not be deemed to be a waiver of a similar or subsequent breach or default.

13. Zoning and Permits. Sublessee will be solely responsible for obtaining any permits or licenses necessary to conduct and operate its business on the Premises.

14. Estoppel Certificate. Within ten (10) days after written request therefor by Sublessor, Sublessee shall execute and deliver in recordable form, a certificate addressed to Sublessor or for its benefit certifying that this Sublease is in full force and effect (if such be the case) and that there are no defenses or offsets thereto claimed by Sublessee and any other information relating to this Lease which Sublessor reasonably requests.

15. Sublease to be Signed. Submission of this instrument for examination or signature by Sublessee does not constitute an offer, nor shall either party be bound to this Sublease until both parties have fully executed a final document and an original signed document is received by both parties. Until such time as is described in the previous sentence either party is free to terminate negotiations with no obligation to the other.

16. Sublessor's Liability. "Sublessor" shall mean only the owner or owners at the time in question of the leasehold interest in the Premises, and in the event any transfer of such interest, the Sublessor herein named (and in the case of any subsequent transfers, then the grantor) shall be relieved from and after the date of transfer of all liability as respects its obligations thereafter to be performed.

17. Relationship of Parties. The relationship between Sublessor and Sublessee shall be that of sublandlord and subtenant only, and there shall be no partnership, joint venture or other relationship between them unless expressly set forth in writing.

18. Signage. Sublessee shall not install or display any signs or lights of any sort without first obtaining Sublessor's and the Landlord's written consent. Sublessee shall pay all costs relating to any signage.

19. Miscellaneous. All applicable terms and conditions of the Lease are incorporated into and made a part of this Sublease as if Sublessor were the Landlord and Sublessee the Tenant. Sublessee assumes and shall perform Sublessor's obligations under the Lease during the Term to the extent such obligations are applicable to the Premises. Sublessee shall not commit or suffer any act or omission that will violate any provision of the Lease. Sublessor shall exercise due diligence in attempting to cause Landlord to perform its obligations under the Lease for Sublessee's benefit. If Sublessor's tenancy under the Lease ceases, this Sublease shall terminate and the parties shall be relieved of any further liability or obligation under this Sublease, provided however, that if the Lease terminates as a result of a default or breach by Sublessor or Sublessee under this Sublease and/or the Lease, then the defaulting party shall be liable to the non-defaulting party for the damage suffered as a result of such termination. But, if any provision of the Lease gives Sublessor any right to terminate

the Lease in the event of the partial or total damage, destruction, or condemnation of the Premises or the building of which the Premises are a part, the exercise of such right by Sublessor shall not constitute a default or breach hereunder.

This Sublease and Sublessee's right hereunder are, and shall be, subject and subordinate to the lien on any mortgage now or hereafter of record describing the Premises.

20. General Terms.

22.1. Notices. Unless otherwise provided in this Sublease or by law, all notices required or permitted by this Sublease or by law to be served on or delivered to a party shall be in writing and deemed duly served, delivered, and received when personally delivered to the party to whom directed, or instead, three (3) business days after deposit in the U.S. mail, certified or registered, return receipt requested, first-class postage prepaid, addressed to the address indicated in this Sublease. A party may change this address by giving written notice of the change to the other party. Confirmed facsimile transmission to a fax machine specified in such a notice shall constitute personal delivery.

22.2. Construction of Sublease. Whenever the context requires, any gender includes all others, the singular number includes the plural, and vice-versa. Captions are inserted for convenience of reference and do not describe or limit the scope or intent of this Sublease. "Person" includes a corporation, limited liability company, partnership, trust, or any other legal entity "including" means including without limitation. Time is of the essence of each obligation of Sublessee hereunder. Any initially capitalized term not defined in this Sublease shall have the meaning given to such term in the Lease.

22.3. Interpretation of Sublease. This Sublease contains the entire agreement between the parties regarding its subject matter. Any prior oral or written representations, agreements, and/or understandings shall be of no effect. No waiver, amendment or discharge of this Sublease shall be valid unless it is in writing and signed by the party to be obligated. This Sublease shall be governed by Wyoming law. Subject to any provision of this Sublease that may prohibit or curtail assignment of rights, this Sublease shall bind and inure to the benefit of the parties and their respective heirs, assigns, personal representatives, and successors. If any term, covenant, or condition of this Sublease is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remaining provisions shall remain in full effect. No inference, assumption, or presumption shall be drawn if a party or a party's attorney prepared and/or drafted this Sublease, it shall be conclusively presumed that the parties participated equally in its preparation and/or drafting.

22.4. Attorneys' Fees. If either party commences litigation (including arbitration) to enforce or interpret this Sublease, the prevailing party shall be entitled to recover actual attorney's fees and all litigation-related costs (including expert witness fees) incurred in addition to all other items of recovery permitted by law.

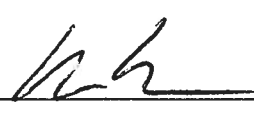
22.5. Execution of This and Other Instruments. The parties have signed below voluntarily after having been advised by their respective counsel of all provisions hereof, and, in signing below, they are not relying on any documents, promises, and representations made by or on behalf of the other party except as set forth herein.

22.6. Counterpart Signatures. This Sublease may be executed in counterparts, each of which shall be deemed an original. Each party shall take all reasonable steps, and execute, acknowledge, and deliver all further instruments necessary or expedient to implement this Sublease

INTENDING TO BE LEGALLY BOUND, the parties have signed this Sublease below.

SUBLESSOR:
Mondello Corporation

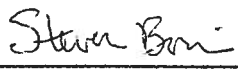
SUBLESSEE:
Stella Polare, LLC

BY:  BY: 

Title: PRESIDENT Title: Owner

Date: 12-30-22 Date: 12/30/22

Greenway Commons, LLC hereby consents to this Sublease.

By: 
Steve Borin, Manager

BUSINESS LEASE AGREEMENT

This Lease Agreement made and entered into effective as of this 1st day of February, 2020 (the "Effective Date"), by and between Greenway Commons LL.C., hereinafter called "Landlord", and Mondello Corporation, hereinafter called "Tenant."

WITNESSETH:

In consideration of mutual covenants and agreements contained herein, and for other good and valuable consideration, which are hereby acknowledged, Landlord hereby leases to Tenant and Tenant rents from Landlord, those certain premises ("Leased Premises") and Tenant do hereby agree to the following:

ARTICLE I LEASED PREMISES, TERM, AND RENT

SECTION 1.1 LEASED PREMISES AND TERM

(a) Premises: Landlord hereby leases to Tenant and Tenant hereby leases from Landlord, upon the terms and conditions hereinafter set forth, Suite D in the Greenway Plaza Shopping Center located at 1507 Stillwater Avenue, Cheyenne, Wyoming 82009 consisting of approximately 3,400 square feet (hereinafter referred to as the "Leased Premises").

(b) Term: The initial term of this Lease shall be for a period of Three (3) years and five (5) months, commencing on the effective date of this Lease and expiring on June 30, 2023. If the Term commences on a day other than the first day of the month, then the Term shall be extended for such fractional month.

Tenant shall have the right and option to extend the Term of this Lease for one additional three (3) year term, which extension term shall commence upon the expiration of the original Term of this Lease. If Tenant exercises its option to extend the Term, the extension shall be upon the same terms, conditions, and covenants of this Lease except the annual rental payable during the extended Term shall be increased in accordance with this lease. If Tenant desires to exercise its option to extend the Term, the Tenant shall give written notice to the Landlord one hundred twenty (120) days prior to the expiration of the Term of this Lease. If said notice is not received by Landlord within said one hundred twenty (120) day time period, Landlord shall have no obligation to renew the lease.

(c) Annual Rent: The annual rent payable by Tenant to Landlord shall be Fifty One Thousand and No/100 Dollars (\$51,000.00) per year for the initial term of the Lease, payable in monthly installments of Four Thousand Two Hundred Fifty and No/100 Dollars (\$4,250.00). Tenant shall pay monthly installments of rent to Landlord without previous demand therefore and without any setoff or deduction whatsoever, on the first day of each and every calendar month throughout the Term and any extension thereof, and, if the term commences on a date other than the first day of a month) Tenant shall pay Landlord on the

first day of the Term, a pro-rata portion of such Annual Rent; calculated on a thirty (30) day calendar month. Tenant shall pay an addition monthly amount of Four Hundred and No/100 Dollar (\$400.00) for common area expenses as provided for in Section 2.2 below. The combined monthly amounts shall make Tenant's total monthly payment shall be Four Thousand Six Hundred Fifty and No/100 (\$4,650.00).

(d) Condition of Building: Tenant shall receive the Leased Premises in its current condition, "as is."

(e) Security Deposit: Landlord acknowledges that a security deposit in the amount of Three Thousand Dollars (\$3,000.00) has been paid. This deposit will be refunded at the expiration of the Lease Term to Tenant so long as Tenant is not in default under the terms of this Agreement. The return of the security deposit is also conditioned on the Leased Premises being returned to Landlord in a clean and tenantable condition.

(f) Notice Address: If to Tenant: Mondello Corporation, 7200 Hawthorne, Cheyenne, Wyoming 82009. If to Landlord: Greenway Commons LLC., 109 E. 17th St., Cheyenne, Wyoming 82001. If either of the parties' address changes, they shall give the other party written notice of such change within five (5) days.

SECTION 1.3 ACCEPTANCE AND ESTOPPEL CERTIFICATE OF LEASED PREMISES

Tenant does acknowledge and agree that Tenant has inspected the Leased Premises and does accept the same as suitable for Tenant's purposes. Upon request of Landlord, Tenant shall promptly execute, acknowledge and deliver to Landlord and/or Landlord's mortgagee a written acceptance or estoppel certificate with respect to the Leased Premises in form and substance provided by Landlord and at the expense of Landlord.

SECTION 1.4 QUIET ENJOYMENT

Tenant, upon paying the rents herein reserved and performing and observing all of the other terms, covenants and conditions of this Lease on Tenant's part to be performed and observed, shall peaceably and quietly have, hold and enjoy the Leased Premises during the Term, subject, nevertheless, to the terms of this Lease and to any mortgages, ground Or underlying leases, agreements and encumbrances to which this Lease is subordinate.

ARTICLE II

COMMON AREA, ASSOCIATION, AND OTHER CHARGES

Tenant shall pay its pro rata share of all real property taxes, insurance, common area maintenance and utility charges relating to the Leased Premises which accrue during the occupancy of Tenant in the Leased Premises.

SECTION 2.1 TAXES

The Tenant shall pay all real property taxes for the Leased Premises during the term of the Lease, and all personal property taxes during the term of the Lease for personal property owned by the Tenant and kept on the Leased Premises.

SECTION 2.2 COMMON AREAS AND OPERATING COSTS

All common areas and other common facilities (hereinafter collectively called "Common Areas") made available by Landlord shall be subject to the exclusive control and management of Landlord. Common Areas (as initially constructed or as the same may be enlarged or reduced at any time thereafter) shall mean all areas, space, facilities, equipment, signs and special services from time to time made available by Landlord for the common and joint use and benefit of Landlord, the Tenant and other tenants and occupants of the building, and their respective employees, agents, Subtenants, concessionaires, licensees, customers and invitees, which may include (but shall not be deemed a representation as to their availability), the sidewalks, parking areas, access roads, driveways, landscaped areas, truck serviceways, tunnels, loading docks, public washrooms, and parcel pick-up stations.

Landlord hereby expressly reserves the right from time to time, to construct, maintain and operate lighting and other facilities, equipment and signs on all of said common areas; to police the same; to change the area, level, location and arrangement of the parking areas and other facilities forming a part of said Common Areas; to close temporarily all or any portion of the common areas for the purpose of making repairs or changes thereto and to discourage non-customer parking; to establish, modify and enforce reasonable rules and regulations with respect to the common areas and the use to be made thereof; and to grant individual Tenants the right to conduct sales in the common areas. Landlord agrees to give Tenant fifteen (15) days notice of any proposed changes. Landlord shall operate, manage, equip, light and maintain the common areas in such manner as Landlord may from time to time determine, and Landlord shall have the right and exclusive authority to employ and discharge all personnel with respect thereto. Tenant is hereby given a non-exclusive license to use, during the Term, the common areas of the building as they may now or at any time during the Term exist, provided, however, that if the size, location or arrangement of such common areas or the type of facilities at any time forming a part thereof be changed or diminished, Landlord shall not be subject to any liability thereof, nor shall Tenant be entitled to any compensation or diminution or abatement of rent therefor, nor shall such change or diminution of such areas be deemed a constructive or actual eviction. However, the building and common areas cannot be changed in a manner which would substantially affect Tenant's ability to operate its business. Landlord reserves the right to grant to third persons the non-exclusive right to cross over and use in common with Landlord and all tenants of the building the common areas as designated from time to time by Landlord. However, such grant cannot substantially affect tenant's ability to operate its business.

Tenant hereby agrees to pay Landlord a share, computed as hereinafter provided, of the Operating Costs (as hereinafter defined) of maintaining the common areas in the building. "Operating Costs" shall mean the total cost and expense incurred in operating, maintaining and repairing the common areas, including without limitation, surcharges levied upon or assessed against parking spaces or areas; the cost and expense of landscaping, gardening and planting, cleaning, painting (including line painting), decorating, paving, lighting, sanitary control, removal of snow, trash, garbage and other refuse, non-structural roof repairs to the building, fire protection; water and sewerage charges; operation of public toilets; repair and replacement of utility systems serving the common areas, including water, sanitary sewer and storm sewer lines and other utility lines, pipes and conduits; depreciation of heating, ventilating and air conditioning equipment, the building roof, and parking lot surfaces; depreciation of machinery and equipment owned and used in operation, maintenance and repair of the common areas, or the rental charges for such machinery and equipment. Landlord may cause any or all of said services to be provided by an independent contractor or contractors. Landlord agrees to consult Tenant prior to making expenditures for common area and operating costs to obtain Tenant's approval for said expenditure. Tenant cannot unreasonably without its approval.

Tenant's share of such operating costs shall be pro-rated for the common areas based on the ratio using the gross leasable square footage of the Leased Premises as the numerator and the gross leasable square footage of the entire building in which the Leased Premises is located as a denominator.

Landlord has estimated the Operating Costs referred to in this section at \$4,800 per year, and Tenant shall pay one-twelfth (1/12) thereof monthly in advance, together with the payment of Annual Rent. After the end of each calendar year, Landlord shall furnish Tenants a statement of the actual Operating Costs, prepared in accordance with sound accounting principles, and there shall be an adjustment between Landlord and Tenant, with any addition amount owed as payment to Landlord. Should there be any surplus in the Operating Costs and described for herein, Tenant shall receive a credit from Landlord that shall be applied against the next year's Annual Rent. Tenant reserves the right to audit operating costs at Tenant's sale cost.

SECTION 2.4 UTILITY CHARGES

Tenant shall pay promptly, as and when the same become due and payable, a pro rata share of all water rents, rates and charges, all sewer rents and all charges for electricity, gas, heat, steam, hot and/or chilled water, air conditioning, ventilating, lighting systems, and other utilities supplied by the Leased Premises, based on the ratio using the gross leasable square footage of the Leased Premises as the numerator and the gross leasable square footage of the building as the denominator, unless separately metered.

ARTICLE III

USE OF LEASED PREMISES

SECTION 3.1 USE OF LEASED PREMISES

Tenant agrees to use the Leased Premises only as a restaurant and/or pizza parlor, including all related functions associated therewith. Permission to sell alcoholic beverages on the premises is hereby granted by Landlord if an authorized liquor license is obtained and properly maintained by Tenant. Tenants expressly agrees that the Leased Premises shall have no residential use of any kind or nature.

Tenant covenants that the Leased Premises shall, during the Term of this Lease, be used only and exclusively for lawful and moral purposes, and no part of the Leased Premises or improvements thereon shall be used in any manner whatsoever for any purposes in violation of any applicable covenants, laws, ordinances, regulations, or orders of the United States, or of the State, County and/or City where the Leased Premises are located. Tenant shall comply with all such laws, ordinances, regulations or orders now in effect or hereafter enacted (except insofar as grandfather rights apply to tenant) or passed during the Term of this Lease insofar as the Leased Premises and any signs of the Tenant are concerned, including, but not limited to zoning ordinances, building codes and fire codes, and shall make at Tenant's own cost and expense all additions and alterations to the Leased Premises ordered or required by such authorities, whether in order to meet the special needs of Tenant, or by reason of the occupancy of Tenant, or otherwise: provided, however, Tenant shall not be required to make structural alterations or improvements to the Leased Premises or the building in which the Leased Premises are located unless written approval by Landlord is obtained before making such improvements or alterations.

SECTION 3.2 ADDITIONAL COVENANTS OF TENANT

Tenant's use of the Leased Premises and the common areas shall be subject at all times during the Term to reasonable rules and regulations adopted by Landlord not in conflict with any of the express provisions hereof, governing the use of the parking areas, walls, walks, driveways, passageways, signs, exteriors of buildings, lighting and other matters affecting other tenants in and the general management and appearance of the building. Tenant agrees to comply with all such rules and regulations upon notice to Tenant from Landlord. Tenant expressly agrees as follows:

(a) All deliveries to or from the Leased Premises shall be done only at such times, in the areas and through the entrances designated for such purposes by the Landlord.

(b) All garbage and refuse shall be kept inside the Leased Premises in the kind of container specified by Landlord, and shall be placed outside of the Leased Premises prepared for collection in the manner and at the times and places specified by Landlord. If Landlord shall provide or designate a service for picking up refuse and garbage, Tenant shall use same at Tenant's cost. Tenant shall pay the cost of removal of any of Tenant's

refuse and garbage and maintain all common loading areas in a clean manner satisfactory to the Landlord.

(c) No radio or television aerial or other device shall be erected on the roof or exterior walls of the Leased Premises or the building in which the Leased Premises are located without first obtaining in each instance the Landlord's consent in writing. Any aerial or device installed without such written consent shall be subject to removal at Tenant's expense without notice at any time.

(d) No loud speakers, television, phonographs, radios, tape players or other devices shall be used in a manner so as to be heard or seen outside of the Leased Premises without prior written consent of Landlord, nor shall Tenant solicit business or distribute advertising or promotional material in the common areas.

(e) The plumbing facilities shall not be used for any other purpose than that for which they are constructed; no foreign substance of any kind shall be thrown therein, and the expense of any breakage, stoppage, or damage resulting from a violation of this provision by the Tenant shall be borne by Tenant. All grease traps, if any, shall be installed and maintained in accordance with applicable law and in accordance with Landlord's requirements.

(f) Tenant shall not burn any trash or garbage of any kind in the Leased Premises.

(g) Tenant shall keep and maintain the Leased Premises' in a neat and clean condition.

(h) Tenant shall pay before delinquency, all license or permit fees and charges of a similar nature for the conduct of any business in the Leased Premises.

(i) Tenant shall store and/or stock in the Leased Premises only such merchandise as Tenant is permitted to offer for sale in the Leased Premises pursuant to this Lease.

(j) Tenant shall not conduct or permit any fire, bankruptcy, auction or "going out of business" sale (whether real or fictitious) in the Leased Premises pursuant to this Lease.

(k) Tenant shall not perform any act or carry on any practice which may damage, mar or deface the Leased Premises or any other part of the building.

(l) Tenant shall not install, operate or maintain in the Leased Premises or in any other area of the building any electrical equipment which does not bear underwriter's approval, or which would overload the electrical system or any part thereof beyond its capacity for proper and safe operation as determined by Landlord.

(m) Tenant shall not suffer, allow or permit any vibration, noise, light, odor, or other effect to emanate from the Leased Premises, or from any machine or other installation therein, or otherwise, suffer, allow or permit the same to constitute a nuisance or otherwise

interfere with the safety, comfort and convenience of Landlord or any of the other occupants of the building or their customers, agents or invitees or any others lawfully in or upon the building. Upon notice by Landlord to Tenant that any of the aforesaid is occurring, Tenant agrees to immediately remove, discontinue, or otherwise control the same.

(n) Tenant shall not use or occupy the Leased Premises in any manner or for any purpose which would injure the reputation or impair the present or future value of the Leased Premises.

(o) Tenant shall not store, display, sell or distribute any dangerous materials (including without limitation fireworks) unless specifically permitted in this Lease.

(p) Tenant shall not use or occupy the Leased Premises or do or permit anything to be done thereon in any manner which shall prevent Landlord and/or Tenant from obtaining at standard rates any insurance required or desired or which would invalidate or increase the cost to Landlord of any existing insurance, or which might cause structural injury to any building, or which would constitute a public or private nuisance or which would violate any present or future laws regulations, ordinances or requirements (ordinary or extraordinary, foreseen or unforeseen) of the federal, state or municipal governments, or of any department, subdivisions, bureaus of offices thereof, or of any other government public or quasi-public authorities now existing or hereafter created having jurisdiction in the Leased Premises of which they form a part.

(q) Tenant shall not operate on the Leased Premises any coin or token operated vending machine or similar device (including, without limitation, pay telephones, pay lockers, pay toilets, scales, amusement devices, and machines for the sale of beverages, foods, candy, cigarettes, or other merchandise and/or commodities), except for the sole and exclusive use of Tenant's employees.

SECTION 3.3 SIGNS, AWNINGS AND CANOPIES

Landlord may erect and maintain such suitable signs as it in its sole discretion may deem appropriate, so long as such signs do not interfere with Tenant's business. Tenant may erect and maintain only such signs as Landlord may approve. Tenant shall submit to Landlord detailed drawings of its sign for review and approval by Landlord prior to erecting said sign on the Leased Premises. Landlord agrees to allow Tenant to place signage on the building that is compatible with other signage in the Plaza, provided it is acceptable to the City of Cheyenne. Landlord also agrees to allow Tenant to place signage on any community sign fronting the street at Tenant's expense.

Tenant shall keep insured and maintain such sign in good condition, repair and operating order at all times. If any damage is done to Tenant's sign, Tenant shall commence to repair the same within five (5) days or Landlord may at its option, repair same at Tenant's expense.

Tenant shall not place or permit to be placed or maintained on any door, exterior wall, or window of the Leased Premises any sign, awning, or canopy or advertising matter or other thing of any kind, and shall not place or maintain any decoration, lettering or advertising matter on the glass of any window or door of the Leased Premises without first obtaining Landlord's written consent. However, such consent shall not be withheld unreasonably. Tenant further agrees to maintain any such signs, awnings, canopies, decorations, lettering, advertising matter or other things as may be approved by Landlord in good condition, operating order and repair at all times. All signs of Tenant visible from the common areas of the building shall be in good taste and shall conform to the standards of design, motif and decor from time to time established by Landlord for the building. No flashing signs shall be permitted. No credit card signs or advertisements nor shall any hand lettered signs be visible from the common areas. Tenant shall install professionally lettered name signs on its service door.

ARTICLE IV

INSURANCE REQUIRED OF TENANT

SECTION 4.1 INSURANCE REQUIRED OF TENANT

(a) Tenant shall obtain and provide proof of insurance to Landlord, if requested, on or before the earlier of the commencement of the Term or Tenant's entering the Leased Premises for any purpose, and keep in force at all times thereafter, the following insurance coverages with respect to the Leased Premises:

(i) Comprehensive General Liability Insurance, with contractual liability endorsement, relating to the Leased Premises and its appurtenances on an occurrence basis with a minimum single limit of One Million Dollars (\$1,000,000.00). Landlord shall be named as an additional insured on all liability insurance policies.

(ii) Fire and Lightning, Extended Coverage, Vandalism and Malicious Mischief, Flood (if required by Landlord, any mortgagee or governmental authority) Insurance in an amount adequate to cover the replacement cost of all personal property, decorations, trade fixtures, furnishings, equipment, and all contents therein of tenants. Tenant acknowledges that any building insurance carried by Landlord will not cover Tenant's personal property and that Tenant is solely responsible for obtaining such coverage to the extent desired by Tenant.

(iii) Workmen's Compensation Insurance covering all persons employed, directly or indirectly, in connection with any finish work performed by Tenant or any repair or alteration authorized by this Lease or consented to by Landlord, and all employees and agents of Tenant with respect to whom death or bodily injury claims could be asserted against Landlord or Tenant, as required by the law of the state where the Leased Premises are located.

(iv) Plate Glass Insurance.

(b) Before undertaking any alterations, additions, improvements or construction, Tenant shall obtain at its expense a Public Liability Insurance Policy insuring Tenant and Landlord against any liability which may arise on account of such proposed alterations, additions, improvements or construction on an occurrence basis with the minimum limits set forth in this Section 4.1.

(c) All of the aforesaid insurance except the Workmen's Compensation Insurance required by subparagraph (a) (Hi) above shall be written in the name of Tenant with Landlord as an additional named insured (and any designees of Landlord and Tenant) and shall be written by one or more responsible insurance companies satisfactory to Landlord and in form satisfactory to Landlord. All such insurance shall contain endorsements that: such insurance may not be canceled or amended with respect to Landlord (or its designees) except upon ten (10) days prior written notice to Landlord (and any such designees) by the insurance company; Tenant shall be solely responsible for payment of premiums and that Landlord (or its designees) shall not be required to pay any premium for such insurance; in the event of payment of any loss covered by such policy, Landlord (or its designees) shall be paid first by the insurance company for Landlord's loss. The minimum limits of the comprehensive general liability policy of insurance shall in no way limit or diminish Tenant's liability hereunder. Tenant shall deliver to Landlord at least fifteen (15) days prior to the expiration of such policy, either a duplicate original or a certificate of insurance on all policies procured by Tenant in compliance with its obligations hereunder; together with evidence satisfactory to Landlord of the payment of the premiums therefor, if Tenant fails to obtain and provide any or all of the aforesaid insurance, then Landlord may, but shall not be required to, purchase such insurance on behalf of Tenant and add the cost of such insurance as additional rent payable with the next installment of Annual Rent.

SECTION 4.2 FIRE INSURANCE RATE AND REQUIREMENTS

Tenant agrees, as its own cost and expense, to comply with all of the rules and regulations of the Fire Insurance Rating Organization having jurisdiction and any similar body. If, at any time and from time to time, as a result of or in connection with any failure by Tenant to comply with the foregoing sentence of any act of omission or commission by Tenant, its employees, agents, contractors or licensees, or as a result of or in connection with the use to which the Leased Premises are put (notwithstanding that such use may be for the purposes hereinbefore permitted or that such use may have been consented to by Landlord), the fire insurance rate(s) applicable to the Leased Premises or the building in which same are located, or to any other premises in said building, or to any adjacent property owned or controlled by Landlord, or an affiliate of landlord, and/or to the contents in any or all of the aforesaid properties shall be higher than that which would be applicable for the hazard hazardous type of occupancy legally permitted therein, Tenant agrees that it will pay to Landlord, on demand, additional rent, such portion of the premiums for all fire insurance policies in force with respect to the aforesaid properties and the contents of any occupant thereof as shall be attributable to such higher rate(s). If Tenant installs any electrical equipment that overloads the lines in the Leased Premises or the building in which the Leased Premises are located, Tenant shall, at its own cost and expense, promptly

make whatever changes are necessary to remedy such condition and to comply with all requirements of the Landlord and the Board or Fire Insurance Underwriters and any similar body and any governmental authority having jurisdiction thereof.

For the purpose of this paragraph, any finding or schedule of the Fire Insurance Rating Organization having jurisdiction thereof shall be deemed to be conclusive.

SECTION 4.3 WAIVER OF SUBROGATION

Landlord shall not be liable for any damage by fire or other peril includable in the coverage afforded by the standard form of fire insurance policy with extended coverage endorsement attached (whether or not such coverage is in effect), no matter how caused, except if intentionally caused, it being understood that Landlord will look solely to its insurer for reimbursement. Any waiver of Landlord's right against Tenant contained in this Section shall be ineffective if such waiver shall be unobtainable, or result in an increase in the cost of Landlord's insurance, unless Tenant shall pay such increase within ten (10) days after notice thereof.

ARTICLE V

REPAIRS AND MAINTENANCE

SECTION 5.1 REPAIRS BY LANDLORD

Within a reasonable period after receipt of written notice from Tenant, Landlord shall make necessary structural repairs to the exterior walls (excluding the exterior of and the frames surrounding all windows, doors, plate glass, store fronts and signs); necessary repairs to the roof, foundations, load bearing items, plumbing, pipes, and conduits located outside the Leased Premises and/or in the common areas and necessary repairs to sidewalks, parking areas and curbs. Landlord shall not be required to make any repairs where the same were made necessary by any act or omission or negligence of Tenant, any subtenant or concessionaire, or their respective employees, agents, invitee, licensees, guests, invitees, visitors, patrons, or contractors, or if caused by fire or other casualty or condemnation, except as provided in Article VII.

SECTION 5.2 REPAIRS AND MAINTENANCE BY TENANT

Tenant shall make and pay for all repairs to the Leased Premises and all equipment and systems serving the Leased Premises exclusively and shall replace all things which are necessary to keep the same in good state of repair and operating order, such as (but not limited to) all fixtures, furnishings, lighting, and store signs of Tenant except for repairs caused by Landlord or its invitees, Tenant shall at all times keep the Leased Premises and all exterior entrances, interior walls, glass and show moldings, partitions, doors, floor surfaces, fixtures, equipment and appurtenances thereof in good order, condition and repair, and in a reasonably satisfactory condition of cleanliness, including reasonably periodic painting of the interior walls of the Leased Premises, and Tenant shall make such

other necessary repairs in and to the Leased Premises not specified in Section 5.1 hereof as being the responsibility of the Landlord. Tenant shall at its expense replace all broken or damaged glass or substitutes thereof, as the case may be except for broken or damaged glass caused by Landlord or its invitees. The provisions of this Section 5.2 shall not limit Landlord's obligation to restore or repair under Article V hereof in the event of fire or other casualty, which was not otherwise caused by Tenant employees, agents, invitee, licensees, guests, invitees, visitors, patrons, or contractors.

If (i) Tenant does not repair within reasonable period of time properly as required hereunder and to the reasonable satisfaction of Landlord, or (ii) Landlord, in the exercise of its sole discretion, determines that emergency repairs are necessary, or (iii) repairs or replacements to the building and/or common areas or to the Leased Premises are made necessary by any act or omission or negligence of Tenant, its agents, employees, subtenants, assignees, concessionaires, contractors, invitees, licensees, or visitors, then in any of such events Landlord may make such repairs, and upon completion thereof, Tenant shall pay Landlord's costs and expenses for making such repairs plus twenty percent (20%) for overhead, upon presentation of a bill therefor, as additional rent. Said bill shall include interest from the date such repairs were billed by the contractor(s) making such repairs.

SECTION 5.3 INSPECTION

Landlord or its representatives shall have the right to enter the Leased Premises during any business day, during business hours (and in emergency at all times) during the Term.

SECTION 5.4 OBSTRUCTIONS

Tenant agrees to keep its loading facilities, if any, and the sidewalks immediately adjoining the Leased Premises free from trash, litter or obstructions.

ARTICLE VI

ADDITIONS AND ALTERATIONS

SECTION 6.1 BY LANDLORD

In the event Landlord shall hereafter determine during the Term to erect additional structures, add stories to existing buildings, as said building may be enlarged or reduced at the sole option of Landlord by addition(s) to the building of and/or building or by the diminution thereof, Tenant hereby consents thereto and to the performance of work necessary to affect the same and any inconvenience caused thereby. However, such activities will be conducted in a manner which shall not interfere with the Tenant's use of the Leased Premises. The design, materials and performance of necessary work therefor shall be in the sole unrestricted discretion of Landlord paid by Landlord. However, Landlord cannot reduce or substantially change the Lease Premises of Tenant.

SECTION 6.2 BY TENANT

Tenant may from time to time (if Tenant shall not then be in default), at its own expense, alter, renovate or improve the Leased Premises provided the same be performed in a good and workmanlike manner; in accordance with accepted building practices and applicable laws including, but not limited to, building codes and zoning ordinances; and so as not to weaken or impair the strength or lessen the value of the building in which the Leased Premises are located, Tenant shall be entitled to all salvage resulting there from. No changes, alterations or improvements affecting the exterior of the Leased Premises or the structure of the building shall be made by Tenant. Prior to commencement of any renovation, alteration, or improvement, Tenant shall obtain Landlord's prior written approval of the plans and specifications therefor and shall cause Landlord's requirements for bonding, insurance, and other contractor requirements to be satisfied. Any work done by Tenant under the provisions of this Section 6.2 shall not interfere with the use by the other tenants of their premises in the building.

ARTICLE VII

DAMAGE, DESTRUCTION OR CONDEMNATION OF THE LEASED PREMISES

SECTION 7.1 DAMAGE OR DESTRUCTION

(a) Except for any damage or destruction which is caused by Tenant and/or Tenant's use and occupancy of the Leased Premises, or that of Tenant's licensees, servants, agents, employees or contractors, guests, invitees, and/or patrons, if all of the Leased Premises shall be damaged or destroyed by fire or other casualty insured under the standard fire insurance policy with approved standard extended coverage endorsement applicable to the Leased Premises, Landlord shall, except as otherwise provided herein, repair and/or rebuild the same with reasonable diligence. Landlord shall not be obligated to commence such repairs and/or rebuilding until insurance proceeds are released to Landlord. Landlord's obligation hereunder shall be further limited to the proceeds received by Landlord under its insurance policy which are allocable to the Leased Premises. However, if the insurance proceeds received by Landlord are insufficient to restore the premises to a condition that is substantially similar to prior condition, then Tenant shall be relieved from its obligations under this Lease. Should Tenant have notified Landlord in writing of the permanent leasehold improvements and betterments installed by Tenant in the completed Leased Premises (whether same have been paid for entirely or partially by Tenant) and should such notice accurately state the full insurance value of such permanent leasehold improvements and betterments and should Tenant have reimbursed Landlord, upon demand, for the cost of the inclusion of the amount of such permanent leasehold improvements and betterments in Landlord's insurance coverage, then and in those events, and subject to the first and second sentences of this subsection, Landlord shall repair and/or rebuild the Leased Premises to a condition comparable to that existing prior to such damage or destruction. Nothing hereinabove contained shall impose upon Landlord any liability or responsibility to repair, rebuild or replace any property belonging to the Tenant. If there should be a

substantial interference with the operation of Tenant's business in the Leased Premises as a result of such damage or destruction which requires Tenant to temporarily close its business to the public, the Annual Rent and other sums payable hereunder shall abate. Unless this Lease is terminated by Landlord, as hereinafter provided. Tenant shall repair redecorate and re-fixture the Leased Premises and restock the contents thereof in a manner and to at least a condition equal to that existing prior to its destruction or casualty, and the proceeds of all insurance carried by Tenant on its personal property, decorations, trade fixtures, furnishings, equipment and contents in the Leased Premises shall be held in trust by Tenant for such purposes. Tenant agrees to exercise reasonable diligence to reopen for business in the Leased Premises as soon as practicable unless this Lease is terminated by Landlord, as hereinafter provided.

(b) Notwithstanding anything else to the contrary contained in this Section 7.1 or elsewhere in this Lease, Landlord, at its option, may terminate this Lease on thirty (30) days' notice to Tenant given within One hundred eighty (180) days after the occurrence of any of the following:

(i) The Leased Premises and/or building in which the leased Premises are located shall be damaged or destroyed as a result of an occurrence which is not covered by Landlord's insurance; or

(ii) The Leased Premises and/or building in which the Leased Premises are located shall be damaged or destroyed and the cost to repair the same shall amount to more than forty percent (40%) of the cost of replacement thereof; or

(iii) The Leased Premises shall be destroyed during the last one (1) year of the Term or during any extended Term; or

(iv) Any or all of the buildings or common areas of the building are damaged (whether or not the Leased Premises are damaged) to such an extent that, in the sole judgment of Landlord, the building cannot be operated as an economically viable unit.

(c) Except to the extent specifically provided for in this Lease, none of the Annual Rent and other sums payable by Tenant, nor any of Tenant's other obligations under any provisions of this Lease, shall be affected by any damage to or destruction of the Leased Premises by any cause whatsoever, and Tenant hereby specifically waives all other rights it might otherwise have under any law or statute.

(d) The term "Cost of Replacement" as used in Paragraph (b)(ii) above shall be determined by the company or companies selected by Landlord insuring Landlord against the casualty in question, or if there shall be no insurance. then as the parties hereto shall agree, or in absence of an insurance company determination or an agreement, as shall be determined by arbitration according to the rules and practice of the American Arbitration Association.

(e) Tenant shall give to Landlord and to all mortgagees of record prompt written notice of any damage to or destruction to any portion of the Leased Premises resulting from fire or other casualty.

SECTION 7.2 CONDEMNATION

If the entire Leased Premises shall be appropriated or taken under the power of eminent domain by any public or quasi-public authority, or conveyance shall be made in lieu thereof, this Lease shall terminate and expire as of the date of such taking, and the parties shall thereupon be released from all liability hereunder which accrues after the date of such taking.

ARTICLE VIII

DEFAULT BY TENANT

SECTION 8.1 DEFAULT

Tenant shall be in default hereunder if (a) Tenant fails to pay when due Annual Rent and any other sums when due under this Lease and such default shall continue for more than ten (10) days; or (b) Tenant fails to observe and perform any of the other terms, covenants and/or conditions of this Lease and such default shall continue for more than ten (10) days after written notice from Landlord to Tenant; or (c) Tenant fails to pay when due the Annual Rent and any other sums payable under this Lease three (3) or more times in any period of twelve (12) consecutive months; or (d) the Leased Premises shall be abandoned, deserted, vacated, or if Tenant fails to take possession of the Leased Premises and initially open for business to the public as required hereunder. If the nature of a default under (b) above is such that it cannot reasonably be cured within the aforesaid cure period, and work thereon shall be commenced within said period and diligently prosecuted to completion, then Landlord's rights under Section 8.2 shall be tolled for a reasonable period to allow for such cure to occur. The Leased Premises and all trade fixtures, equipment and inventory therein shall be conclusively deemed abandoned by Tenant upon (a) fifteen (15) consecutive days absence from the Leased Premises by Tenant or its agents without reasonable cause (unless such absence results from fire or other casualty) together with the failure to pay Annual Rent, or (b) removal of all or a substantial portion of Tenant's trade fixtures, equipment or inventory from the Leased Premises together with a failure to pay annual Rent. In such event and in addition to Landlord's remedies set forth in Section 9.2, Landlord may enter the Leased Premises and may remove all such remaining trade fixtures, equipment and inventory at Tenant's expense. All such property shall, at Landlord's option, become the property of Landlord, or said property may be placed in storage at Tenant's cost and expense, or sold or otherwise disposed of in Landlord's sole and absolute discretion, in which event the proceeds of such sale or other disposition shall belong to Landlord.

If at any time during the Term there shall be filed by or against tenant or any successor, Tenant then in possession or any guarantor of either under this Lease, in any

court pursuant to any statute either of the United States or of any state, a petition (i) in bankruptcy, (ij) alleging insolvency, (iii) for reorganization, (iv) for the appointment of a receiver, or (v) for all arrangement under the Bankruptcy Acts, or if a similar type of proceeding shall be filed, Landlord may terminate Tenant's rights under this Lease by notice in writing to Tenant, and thereupon Tenant shall immediately quit and surrender the premises to Landlord, but Tenant shall continue to be liable for the payment of rent and all other sums due hereunder.

SECTION 8.2 LANDLORD'S RIGHTS ON DEFAULT

In the event of any default by Tenant, Landlord may (1) apply the Security Deposit, if any, toward the satisfaction and cure of such a default, and/or (2) cure Tenant's default at Tenant's costs and expense, and/or (3) reenter the Leased Premises and remove all persons and all or any property therefrom, by any suitable action or proceeding at law, and repossess and enjoy the leased Premises with all additions, alterations and improvements, and Landlord may, at its option, repair, alter, remodel and/or change the character of the Leased Premises as it may deem fit, and/or (4) at any time relet the Leased Premises or any part or parts thereof, as the agent of Tenant or in Landlord's own right, and/or (5) terminate this Lease upon not less than three (3) weeks written notice to Tenant.

The exercise by Landlord or any right granted in this Section, shall not relieve Tenant from the obligation to make all rental payments, and to fulfill all other covenants required by this Lease, at the time and in the manner provided herein, and if Landlord so desires, all current and future rent and other monetary obligations do hereunder less the fair rental value of the Leased Premises shall become immediately due and payable after Tenant has been in default for a period of three (3) months. Tenant throughout the remaining term hereof shall pay Landlord, no later than the last day of each month during the term, the then current excess, if any, of the sum of the unpaid rentals and costs to Landlord resulting from such default by Tenant over the proceeds, if any, received by Landlord from such reletting, if any, but Landlord shall have no liability to account to Tenant for any excess.

In the event of a breach by Tenant of any of the covenants or provisions hereof, Landlord shall have, in addition to any other remedies which it may have, the right to invoke any remedy allowed at law or in equity to enforce Landlord's right or any of them, as if re-entry and other remedies were not herein provided for. Tenant agrees that no demand for rent, except as required under this contract, and no re-entry for condition broken and no notice to quit possession or other notices prescribed by statute shall be necessary to enable Landlord to recover such possession, but that all right to any such demand and any such re-entry and any notice to quit possession or other statutory notices or prerequisites are hereby expressly waived by Tenant. The only notices required are those required by this contract.

Exercise by Landlord of any one or more remedies provided for herein shall not be deemed to be an acceptance of surrender of the Premises by Tenant, whether by agreement or operation of law, it being understood that such surrender can be effected only by the written agreement of Landlord and Tenant. No alteration of locks or other security devices

and no entry by Landlord into the Premises or removal or other exercise of dominion by Landlord over the property of Tenant or others at the Premises shall be deemed unauthorized or constitute conversion, Tenant hereby consenting, after any Tenant default, to the aforesaid exercise of dominion over Tenant's property within the Premises. All claims for damages by reason of any such reentry, repossession and alteration of locks or other security devices are hereby waived, as are all claims for damages by reason of any distress warrant, forcible detainer or unlawful detainer proceedings, sequestration proceedings or other legal process. Tenant agrees that any reentry by Landlord may be pursuant to judgment obtained in forcible detainer or unlawful detainer proceedings or other legal proceedings or without the necessity for any legal proceedings and Landlord shall not be liable for trespass or otherwise.

SECTION 8.3 NON-WAIVER PROVISIONS

The failure of Landlord to insist upon a strict performance of any of the terms, conditions and covenants herein shall not be deemed to be a waiver of any rights or remedies that Landlord may have and shall not be deemed a waiver of any subsequent breach or default in the terms, conditions and covenants herein contained except as may be expressly waived in writing.

The maintenance of any action or proceeding to recover possession of the Leased Premises, or any installment or installments of rent or any other moneys that may be due or become due from Tenant to Landlord, shall not preclude Landlord from thereafter instituting and maintaining subsequent actions or proceedings for the recovery of possession of the Leased Premises or of any other moneys that may be due or become due from Tenant. Any entry or re-entry by Landlord shall not be deemed to absolve or discharge Tenant from the obligations of this Contract.

SECTION 8.4 INABILITY TO PERFORM

If Landlord is delayed or prevented from performing any of its obligations under this Lease by reason of strike or labor troubles of any cause whatsoever beyond Landlord's control, the period of such delay or such prevention shall be deemed added to the time herein provided for the performance of any such obligation by Landlord.

SECTION 8.5 ATTORNEY'S FEES AND REMEDIES

If a party shall at any time be in default hereunder, and if the other party shall deem it necessary to engage attorneys to enforce its rights hereunder, the defaulting party will reimburse the prevailing party for the reasonable expenses incurred thereby, including but not limited to court costs and reasonable attorney's fees. Each party shall have any and all remedies available under the law.

ARTICLE IX

OTHER PROVISIONS

SECTION 9.1 DEFINITION AND LIABILITY OF LANDLORD

The term "Landlord" as used in this Lease means only the owner or mortgagee in possession for the time being of the building in which the Leased Premises are located or the owner of a leasehold interest in said building and/or the land thereunder (or the managing agent of any such owner or mortgagee) so that in the event of sale of said building or leasehold interest or an assignment of this Lease; or a demise of said building and/or land, Landlord shall be and hereby is entirely freed and relieved of all *obligations* of Landlord subsequently accruing.

SECTION 9.2 RELATIONSHIP OF THE PARTIES

Nothing contained in this Lease shall be deemed or construed as creating the relationship of principal and agent or of partnership or joint venture between the parties hereto, it being understood and agreed that neither the method of computing rent nor (my other provision contained herein nor any acts of the parties hereto shall be deemed to create any relationship between the parties other than that of Landlord and Tenant. If the named Landlord in this Lease is designed as an agent or managing agent, then Tenant agrees that the word "Landlord" shall be deemed to refer solely to such agent principal.

SECTION 9.3 INDEMNITY

Tenant agrees to indemnify and save Landlord harmless from and against any and all claims and demands (except such as result from the negligence of Landlord) for, or in connection with, any accident, injury or damage whatsoever caused to any person or property arising, directly or indirectly, out of the business conducted in or Tenant's use and/or occupancy of the Leased Premises occurring in, on or about the Leased Premises or any part thereof, including the sidewalks and parking areas adjacent thereto, or arising directly or indirectly, from any act, error, or omission of Tenant or any concessionaire or sub-tenant or their respective licensees, servants, agents, employees or contractors, guests, and invitees, from and against any and all cost, expenses and liabilities incurred in connection with any such claims and/or proceedings brought thereon, including attorneys' fees and costs. The comprehensive general liability coverage maintained by Tenant pursuant to this Lease shall specifically insure the contractual obligations of Tenant as set forth in this Section and/or as provided in this Lease. This indemnification shall include any harm incurred by any licensees, servants, agents, employees or contractors, guests, invitees, and/or patrons of Tenant's business.

SECTION 9.4 DAMAGE TO PROPERTY OR PERSONS

Landlord shall not be liable for any loss of or damage to property of Tenant or of others located in the Leased Premises or the building, by theft or otherwise, nor for any

loss or damage whatsoever to any property which Tenant could remove at the end of the Term. Landlord shall not be liable for any injury or damage to persons or property or to the interior of the Leased Premises resulting from fire, explosion, falling plaster, steam gas, electricity, water, rain or snow or leaks from any part of the Leased Premises or from the pipes, appliances, or plumbing works or from the roof, street, or subsurface or from any other place or by dampness or by any other cause of whatsoever nature. Landlord shall not be liable for any such injury or damage caused by any Tenants or any person(s) either in the Leased Premises or elsewhere in the building, or by occupants of property adjacent to the building, or by the public, or by operations in the construction of any private, public, or quasi-public work. Landlord shall not be responsible for damage or loss of property of Tenant kept or stored in the Leased Premises, no matter how it caused.

SECTION 9.5 ASSIGNMENT OR SUBLETTING

So long as Tenant is not in default under any provision of this Lease, Tenant may assign its interest under this Lease or sublet the entire Leased Premises (but not a part thereof) to a wholly owned corporation or controlled subsidiary of Tenant, without the consent of Landlord. Tenant shall not make any other assignment or subletting without the prior written consent of Landlord. In no event shall any assignment or sublease of the Leased Premises release or relieve Tenant from any obligations of this Lease. Tenant agrees to pay as additional rent Landlord's reasonable attorney's fees incurred in connection with review and/or preparation of any assignments of the subleases.

Any permitted assignee of Tenant shall assume Tenant's obligations hereunder and shall deliver to Landlord an assignment and assumption agreement in form satisfactory to Landlord within ten (10) days after the effective date of the assignment.

If the Tenant is a corporation (other than one whose shares are regularly and publicly traded on a recognized stock exchange), Tenant represents that the ownership and power to vote its entire outstanding capital stock belongs to and is vested in the officer or officers executing this Lease or members of his or their immediate family. If there shall occur any change in the ownership of and/or power to vote the majority of the outstanding capital stock of Tenant, whether such change of ownership is by sale, assignment, bequest, inheritance, operation of law or otherwise, without the prior written consent of Landlord, then Landlord shall have the option to terminate this Lease upon thirty (30) days' notice to Tenant.

SECTION 9.6 SURRENDER OF PREMISES AND HOLDING OVER

At the expiration of the tenancy hereby created, Tenant shall surrender the Leased Premises in good condition, reasonable wear and tear excepted, and Tenant shall surrender all keys for the Leased Premises to Landlord at the place then fixed for the payment of rent and shall inform Landlord of all combinations on locks, safes and vaults, if any, in the Leased Premises. Tenant's obligation to observe or perform this covenant shall survive the expiration or other termination of the terms of this Lease. If Tenant shall default in so surrendering the premises, Tenant's occupancy subsequent to such expiration, whether or

not with the consent or acquiescence of Landlord, shall be deemed to be that of a tenancy at sufferance and in no event from month to month or from year to year, and it shall be subject to all terms, covenants, and conditions of this Lease applicable thereto, except that Annual Rent shall be twice the amount payable in the last year of the Term, and no extension or renewal of this Lease shall be deemed to have occurred by such holding over.

Prior to the expiration or sooner termination of this Lease, Tenant shall remove any and all trade fixtures, equipment and other unattached items which Tenant may have installed, stored or left in the Leased Premises or elsewhere in the building, including but not limited to counters, shelving, show cases, chairs and unattached moveable machinery purchased or provided by Tenant and which are susceptible of being moved without damage to the building. Tenant shall repair any damage to the Leased Premises caused by its removal of such fixtures and movables. In the event Tenant does not make such repairs, Tenant shall be liable for and agrees to pay Landlord's costs and expenses in making such repairs, together with a sum equal to twenty percent (20%) of such costs and expenses to cover Landlord's overhead in making such repairs on Tenant's behalf. Tenant shall not remove any plumbing or electrical fixtures or equipment, heating or air condition equipment, floor coverings (including, but not limited to, wall to wall carpeting) walls or ceilings, all of which shall be deemed to constitute a part of the Leased Premises owned by Landlord, nor shall Tenant remove any fixtures or machinery that were furnished or paid for by Landlord (whether initially installed or replaced). The Leased Premises shall be left in a broom-clean condition. If Tenant shall fail to remove its trade fixtures or other property as provided in this Section 9.6, such fixtures and other property not removed by Tenant shall be deemed abandoned by Tenant and at the option of Landlord shall become the property of Landlord, or at Landlord's option may be *removed* by Landlord at Tenant's expense plus twenty percent (20%) as herein provided, or placed in storage at Tenant's expense, or sold, or otherwise disposed of at Landlord's sole and absolute discretion, in which event the proceeds of such sale or other disposition shall belong to Landlord. Notwithstanding anything to the contrary contained herein, any of the improvements or alterations made by Tenant which are not moveable without damaging the building shall be deemed to be made part of the Leased Premises and shall become property of the Landlord at the termination of this Lease.

SECTION 9.7 LIENS

Tenant shall discharge any lien filed against the building as a result of Tenant's actions or any part thereof for work done or materials furnished with respect to the Leased Premises within thirty (30) days after such lien is filed and Tenant shall execute lien waivers prior to commencement of construction in the Leased Premises. If Tenant fails to keep this covenant, in addition to any other remedies available to Landlord under this Lease or otherwise, Landlord may at its option discharge such lien, in which event Tenant agrees to pay Landlord a sum equal to the amount of the lien thus discharged, plus Landlord's internal administrative costs, attorney's fees, expenses and damages thereby caused Landlord.

SECTION 9.8 INTEREST

Whenever this Lease refers to "Interest", the rate shall be ten percent (10%).

SECTION 9.9 LATE PAYMENTS

Should Tenant fail to pay when due any installment of Annual Rent or any other sum payable to Landlord under the terms of this Lease, then Interest shall accrue from the date of such delinquency and shall continue until such sum is paid, and such Interest together with a Late Charge of One Hundred Dollars (\$100.00) shall be paid by Tenant to Landlord at the time of payment of the delinquent sum.

SECTION 9.10 CONSENTS

With respect to any provision of this Lease which either provides or is held to provide that consent is required, Landlord or Tenant shall not unreasonably withhold or unreasonably delay any consent or approval.

SECTION 9.11 NOTICES

Whenever notice shall or may be given to either of the parties by the other, each such notice shall be by registered or certified mail with return receipt requested to the respective address of the party to receive notice as contained herein or to such other address as either party may from time to time designate in writing to the other. Any notice under this Lease shall be deemed to have been given at the time it is placed in the mail with sufficient postage prepaid.

SECTION 9.12 NO BROKER

Tenant warrants and represents that no broker was involved on its behalf in negotiating or consummating this Lease and agrees to indemnify and hold Landlord harmless from and against any and all claims for brokerage commissions arising out of any communications or negotiations had by Tenant with any broker regarding the Leased Premises or any other premises in the building and/or the consummation of this Lease. Landlord is solely responsible for the payment of any broker's commission.

SECTION 9.13 SHORT FORM LEASE

Tenant agrees not to record this Lease without the express written consent of Landlord and further agrees to execute, acknowledge and deliver at any time after the date of this Lease, at the request of Landlord, a "short form lease" suitable for recording.

SECTION 9.14 ENTIRE AND BINDING AGREEMENT

This Business Lease Agreement contains all of the agreements between the parties hereto and it may not be modified in any manner other than by agreement in writing signed

by all the parties hereto or their successors in interest. The terms, covenants and conditions contained herein shall inure to the benefit of and be binding upon Landlord and Tenant and their respective successors and assigns, except as may be otherwise expressly provided in this Lease. Tenant acknowledges that neither Landlord nor any broker has made any representation to or agreement with Tenant which is not contained in this Lease.

SECTION 9.15 PROVISIONS SEVERABLE

If any term or provision of this Lease or the application thereof to any person or circumstance shall, to any extent, be invalid or unenforceable, the remainder of this lease, or the application of such term or provision to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby and each term and provision of this Lease shall be valid and be enforced to the fullest extent permitted by law.

SECTION 9.16 CAPTIONS

The captions contained herein are for the convenience and reference only and shall not be deemed as part of this Lease or construed as in any manner limiting or amplifying the terms and provisions of this Lease to which they relate.

SECTION 9.17 WAIVER OF JURY TRIAL

TO THE EXTENT PERMITTED BY LAW, THE PARTIES HERETO HEREBY JOINTLY AND SEVERALLY WAIVE ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY ACTION OR PROCEEDING RELATING TO THIS LEASE AND THE OBLIGATIONS HEREUNDER. THE PARTIES EACH REPRESENT TO THE OTHER THAT THIS WAIVER IS KNOWINGLY, WILLINGLY AND VOLUNTARILY GIVEN.

IN WITNESS WHEREOF, Landlord and Tenant have duly executed this Lease as of the day and year first above written, each acknowledging receipt of an executed copy hereof.

LANDLORD

TENANT:

GREENWAY COMMONS LLC

MONDELLO CORPORATION

BY: Steven Pan
NAME: STEVEN PAN
ITS: OWNER/MANAGER

BY: Giuseppe Mondello
NAME: GIUSEPPE MONDELLO
ITS: OWNER/MANAGER

L'OSTERIA MONDELLO

MENU

--	--

(RESTAURANT)

APPETIZERS

SHRIMP OVER GARLIC TOAST*

PALAMARETTI FRITTI

DEEP FRIED CALAMARI

MUSSELS ROMANA

RED SAUCE

HOT ANTIPASTO

CALAMARI, MUSSELS, CLAMS, RAVIOLI, AND
MARINARA

MUSSELS BIANCO

WHITE WINE, GARLIC SAUCE

SOUP

TORT EN BRODO

SOUP OF THE DAY

SALAD

WEDGE SALAD

ICEBERG SALAD, BACON, TOMATOES, BLUE CHEESE CRUMBS AND BLUE CHEESE DRESSING

GREEK SALAD

MIX GREENS, OLIVES, TOMATOES, ONIONS, CUCUMBERS, FETA CHEESE, OLIVE OIL AND BALSAMIC
VINEGAR, OREGANO

CAESAR SALAD

ROMAINE SALAD, CROUTONS, PARMESAN CHEESE, CAESAR DRESSING

ROASTED RED PEPPERS CAPRESE SALAD

FRESH MOZZARELLA CHEESE, BEEFSTEAK TOMATOES, ROASTED RED PEPPERS, BASIL, OLIVE OIL AND
BALSAMIC VINEGAR

*CONSUMING RAW OR UNDERCOOKED MEATS, POULTRY, SEAFOOD, SHELLFISH, OR EGGS MAY INCREASE YOUR RISK OF FOODBORNE
ILLNESS.*

SEAFOOD

SCALLOPS ALLA LIMONE

SEA SCALLOPS IN LEMON AND WHITE WINE
SAUCE

PESCI MISTO*

LOBSTER TAIL, SCALLOPS, CLAMS, SHRIMP AND
MUSSELS

GAMBERI SCAMPI ALLA

MONDELLO*

SHRIMP SAUTÉED IN GARLIC, BUTTER, WHITE
WINE SAUCE, LEMON AND PARSLEY, ON A BED
OF LINGUINI

CALAMARI ALLA SICILIANA

FRESH SQUID, SAUTÉED OR DEEP FRIED IN
WHITE WINE SAUCE

ARAGOSTA FRA DIAVOLO

TWO FOUR OUNCE MAIN LOBSTER TAILS IN A
SPICY RED SAUCE OVER LINGUINI

PASTA

VODKA RIGATONI

PINK CREAM SAUCE WITH BUTTER, PROSCIUTTO AND VODKA

RIGATONI ALFREDO WITH SAUSAGE

WHITE SAUCE MADE WITH BUTTER, CREAM AND PECORINO ROMANO CHEESE AND ITALIAN SAUSAGE

BUCATINI AMATRICIANA

GUANCIALE, ONION, TOMATOES IN WHITE WINE SAUCE

SPAGHETTI CARBONARA

GUANCIALE, PECORINO CHEESE EGGS, BLACK PEPPER

GNOCCHI MEAT SAUCE

LASAGNA

PASTA LAYERED WITH MEAT SAUCE, BECHAMEL, MOZZARELLA AND PECORINO CHEESE

MANICOTTI

THREE CHEESE STUFFED PASTA AND ROLLED IN TOMATO SAUCE

*CONSUMING RAW OR UNDERCOOKED MEATS, POULTRY, SEAFOOD, SHELLFISH, OR EGGS MAY INCREASE YOUR RISK OF FOODBORNE
ILLNESS.*

MEAT

LAMB CHOPS*

CHARBROILED AND SEASONED WITH ROSEMARY AND GARLIC

CHICKEN/VEAL CARCIOFI*

FILETS OF CHICKEN OR VEAL SAUTÉED WITH ARTICHOKE HEARTS, BLACK OLIVES, OLIVE OIL,
SCALLIONS IN RED SAUCE

CHICKEN/VEAL PICANTE*

FILETS OF CHICKEN OR VEAL SAUTEED IN LEMON SHERRY SAUCE TOPPED WITH CAPERS

SALTIMBOCCA ROMANA

VEAL SAUTEED WITH PROSCIUTTO, SAGE AND PROVOLONE

CHICKEN/VEAL MARSALA*

FILETS OF CHICKEN OR VEAL SAUTEED WITH MUSHROOMS IN A SHERRY SAUCE

KID'S MENU

SPAGHETTI AND MARINARA

CHOICE OF MEAT BALL, HAM OR SAUSAGE

CHEESE RAVIOLI

LASAGNA

*CONSUMING RAW OR UNDERCOOKED MEATS, POULTRY, SEAFOOD, SHELLFISH, OR EGGS MAY INCREASE YOUR RISK OF FOODBORNE
ILLNESS.*

DESSERTS

TIRAMISU

PANNA COTTA

CANNOLO

SPUMONI

CREME BRULEE

CONSUMING RAW OR UNDERCOOKED MEATS, POULTRY, SEAFOOD, SHELLFISH, OR EGGS MAY INCREASE YOUR RISK OF FOODBORNE ILLNESS.

L'Osteria Mondello
Beer & Wine Menu

Whites

SAUVIGNON BLANC Lemon-lime, gooseberry, green herbs, and white flower aromas

CHARDONNAY Medium-bodied delivering notes of banana

UNOAKED CHARDONNAY Zesty with lemon, green apple, and melon aromas and flavors

VIOGNIER Full-bodied with intense aromas of peach, guava, melon, and lemon

MOSCATO Rich and well balanced, intensely aromatic, tropical fruit flavors

Reds

PINOT NOIR Light-bodied but viscous with red fruit, oak spice, pepper, and smoke

PETITE SIRAH Full-bodied with aromas of dark fruit, mocha, and spice

CABERNET SAUVIGNON Aromas of mixed berries, herbs, and spice with balanced acidity

Cans

Coors Light
Pale Lager • 4.2% • Golden, CO
16oz Can \$3.50

Michelob Ultra
Pale Lager • 4.2% • St. Louis, MO
16oz Can \$3.50

Miller Lite Aluminum
Pale Lager • 4.2% • Milwaukee, WI
16oz Bottle \$3.50

Pizza by the Slice

\$3.00 - \$5.00

Pizza

	Med.	Large	XLarge
Cheese	\$13.00	14.00	16.00
Pepperoni	15.00	16.00	18.50

Sicilian Pizza

Sicilian Pizza Cheese	Large \$19.00
Sicilian with The Works (pepperoni, sausage, mushrooms, green pepper, onion, garlic, black olives, anchovies)	\$27.00

Gourmet Pizza

Rustica (fresh plum tomatoes & basil)	Med	Large
White (garlic, basil, & extra virgin olive oil)	\$15.00	\$16.00
White Broccoli (broccoli, fresh garlic & olive oil)	\$18.00	\$19.00
Joe's Favorite (Italian sausage, plum tomato, Fresh basil, extra virgin olive oil)	\$18.00	\$19.00
Spinach & Ricotta (Fresh plum tomatoes, spinach, ricotta)	\$18.00	\$19.00
The Works (pepperoni, sausage, mushrooms, green pepper, onion, garlic, black olives, anchovies)	\$22.00	\$23.00

Extra Toppings:

Extra cheese, meatballs, pepperoni, sausage,
ham, green pepper, black olives, mushrooms,
onions, fresh garlic, anchovies

Hot Italian Subs

Sausage	\$10.00
Sausage & Peppers	\$10.50
Sausage Parmigiana	\$10.50
Sausage, Peppers Parmigiani	\$11.00
Meatball	\$10.00
Meatball & Peppers	\$10.50
Meatball, Parmigiana	\$10.50
Meatball, Peppers, Parmigiana	\$11.00
Chicken Parmigiana	\$11.00
Eggplant Parmigiana	\$11.00

Hot Steak Subs

Steak	\$10.00
Steak & Peppers	\$11.00
Steak & Cheese (steak, provolone, green pepper, mushroom, onion)	\$11.00
Steak & Mushrooms	\$11.00
Steak Hoagie	\$12.50
Dan's Special (steak pepperoni, jalapeno, capicola, onions, provolone)	\$12.00
Special Steak (steak, pepperoni, jalapeno, capicola, onions, provolone)	\$12.00
Pizza Steak	\$12.00

Cold Italian Subs

Ham & Provolone	\$10.00
Salama & Provolone	\$10.00
Capicola & Provolone	\$11.00
Special Sub (ham, salami, capicola, provolone, jalapeno, onions, provolone)	\$11.00
Turkey	\$10.00
Hot Ham & Cheese	\$10.00

Calzones & Stromboli

Calzone (ham, mozzarella, ricotta, pecorino)	Single	Family
Stromboli (pepperoni, green pepper, onion, marinara, mozzarella, pecorino)	\$10.00	\$17.00
Panzarotti (three cheeses, meat sauce)	\$10.00	\$17.00
Pepperoni Roll	\$9.00	\$15.00
		\$4.25

Fresh Salads

Tossed Salad	\$5.25
Cesar Salad	\$6.50
Combo Salad Lettuce, tomato, peppers, onion, Capicola, salami, ham, provolone)	\$10.00
Antipasto Salad Lettuce, tomato, peppers, onion, Capicola, salami, ham, provolone, Olives, anchovies)	\$11.00
Chicken Cesar Salad	\$11.00

Extras:

Garlic Bread	\$4.25
Bread & Butter	\$2.25

Desserts

Cannoli	\$5.25
Tiramisu	\$5.50

Beverages

Fountain Drinks	Med	Large
	\$3.00	\$3.50
Coke, Diet Coke, Coke Zero, Dr. Pepper, Diet Dr. Pepper, Sprite, Barq's, Lemonade, Unsweetened Tea, Raspberry Tea, Peach Tea		

Our Dishes/Ingredients

L'Osteria in Italian translates to "bistro" which means any dishes made, have to be made fresh in house. We make our pizza dough, homemade bread rolls, and pasta sauce fresh daily with the finest ingredients. Our recipes are authentic Italian and Italian-New York dishes passed down from Joe's Sicilian ancestors.

About Us

L'Osteria Mondello opened its doors in 1986. Guiseppe Mondello, known as Joe, is a native Italian who immigrated to America. Joe shared his passion for Italian food and pizza by serving great authentic food to the local Cheyenne community. Upon retirement, Joe was pleased to hand over L'Osteria Mondello to his customer and friend David Agovic

January 2023, David Agovic took over ownership of L'Osteria Mondello after 18 years in the hospitality and fine dining industry. He has an outstanding reputation and relationship with his customers. David has a passion for cooking, cultures, fine dining, and customer service.

L'Osteria Mondello

*Fresh made-to-order
Italian Pizza, Calzones,
Sabs & Salads*

Take-out Menu

Phone:

307-778-6068

Address:

1507 Stillwater Ave

Hours:

Tues-Thurs 11am to 8pm

Fri-Sunday 11am to 9pm

Stella Polare LLC

1507 Stillwater Ave Ste D
Cheyenne, WY 82009
(307)778-6068
stellapolarellc@gmail.com

17th April 2023

To whom it may concern

Dear Sir/Madam,

Stella Polare, dba L'Osteria Mondello, would like to propose their use of the TIPS Alcohol Training program to serve and prepare alcohol according to the applicable laws and regulation. Jasmin Agovic, one of two owners, has already completed his TIPS training and is TIPS certified. Any other L'Osteria Mondello personnel who will be serving or preparing alcohol will also undergo this training prior to serving or preparing alcohol to ensure the lawful operation of our establishment and protect our community and its members.

Sincerely,

Jasmin Agovic



Anika Willaims

